Family Law Act 1986

1986 CHAPTER 55

An Act to amend the law relating to the jurisdiction of courts in the United Kingdom to make orders with regard to the custody of children; to make provision as to the recognition and enforcement of such orders throughout the United Kingdom; to make further provision as to the imposition, effect and enforcement of restrictions on the removal of children from the United Kingdom or from any part of the United Kingdom; to amend the law relating to the jurisdiction of courts in Scotland as to tutory and curatory; to amend the law relating to the recognition of divorces, annulments and legal separations; to make further provision with respect to the effect of divorces and annulments on wills; to amend the law relating to the powers of courts to make declarations relating to the status of a person; to abolish the right to petition for jactitation of marriage; to repeal the Greek Marriages Act 1884; to make further provision with respect to family proceedings rules; to amend the Child Abduction Act 1984, the Child Abduction (Northern Ireland) Order 1985 and the Child Abduction and Custody Act 1985; and for connected purposes. [7th November 1986]

X1Be it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Editorial Information

X1 The text of ss. 55, 58 to 63, 68, 69 was taken from S.I.F. Group 49:1 (Family Law: Marriage, England and Wales and Abroad), ss. 44 to 54, 64, 68, 69, Schs. 1, 2 from S.I.F. Group 49:3 (Family Law: Matrimonial Proceedings), ss. 56, 58 to 60, 63, 68, 69 from S.I.F. Group 49:7 (Family Law: Legitimacy, Affiliation and Age of Majority, England and Wales), ss. 1 to 7, 19 to 43, 65 to 69 from S.I.F. Group 49:9 (Family Law: Guardianship, England and Wales and Northern Ireland), ss. 1, 8 to 18, 25 to 43, 67 to 69 from S.I.F. Group 49:10 (Family Law: Guardianship and Aliment, Scotland), and ss. 57, 58 to 60, 63, 68, 69 from S.I.F. Group 49:11 (Family Law: Adoption).

Extent Information

E1 Act extends to the United Kingdom but for exceptions see s. 69(5)(6)(7)

***Changes to legislation:** Family Law Act 1986 is up to date with all changes known to be in force on or before 30 May 2025. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details) View outstanding changes*

Modifications etc. (not altering text)

C1 Act restricted by 1986 c. 55, s. 2(2A) (as inserted (30.12.2005) by Adoption and Children Act 2002 (c. 38), s. 148(1), **Sch. 3 para. 48** (with Sch. 4 paras. 6-8); S.I. 2005/2213, art. 2(o))

Commencement Information

I1 Act not in force at Royal Assent see s. 69(2)(3); Act partly in force at 7.1.1987 see s. 69(2)

PART I

CHILD CUSTODY

Modifications etc. (not altering text)

C2 Pt. I applied by S.I. 1991/1723, art. 3(2), **Sch. 2** and art. 3(3), Sch. 3.

CHAPTER I

PRELIMINARY

1 Orders to which Part I applies. E+W+N.I.

(1) Subject to the following provisions of this section, in this Part "**[**F1Part I order**]**" means—

[F2(a) a section 8 order made by a court in England and Wales under the Children Act 1989, other than an order varying or discharging such an order**]**

[F3(aa) a special guardianship order made by a court in England and Wales under the Children Act 1989;

(ab) an order made under section 26 of the Adoption and Children Act 2002 (contact), other than an order varying or revoking such an order**]**

[F4(ac) an order made under section 51A of the Adoption and Children Act 2002 (post-adoption contact), other than an order varying or revoking such an order;**]**

(b) an order made by a court of civil jurisdiction in Scotland under any enactment or rule of law with respect to the **[**F5residence, custody, care or control of a child, contact with or**]**, access to a child or the education or upbringing of a child, excluding—

(i) an order committing the care of a child to a local authority or placing a child under the supervision of a local authority;

F6(ii) . . . . . .

F6(iii) . . . . . .

(iv) an order **[**F7giving parental responsibilities and parental rights in relation to**]** a child made in the course of proceedings for the adoption of the child (other than an order made following the making of a direction under section 53(1) of the Children Act 1975);

(v) an order made under the M1Education (Scotland) Act 1980;

(vi) an order made under Part II or III of the M2Social Work (Scotland) Act 1968;

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(vii) an order made under the [M3]Child Abduction and Custody Act 1985;

(viii) an order for the delivery of a child or other order for the enforcement of a **[**[F1]Part I order**]**;

(ix) an order relating to the tutory or curatory of a child;

[[F8](x) an adoption order (as defined in section 28(1) of the Adoption and Children (Scotland) Act 2007 (asp 4));

(xi) a permanence order (as defined in subsection (2) of section 80 of that Act) which includes provision such as is mentioned in paragraph (c) of that subsection.**]**

[[F9](c) an Article 8 order made by a court in Northern Ireland under the Children (Northern Ireland) Order 1995, other than an order varying or discharging such an order;**]**

[[F10](d) an order made by a court in England and Wales in the exercise of the inherent jurisdiction of the High Court with respect to children—

(i) so far as it gives care of a child to any person or provides for contact with, or the education of, a child; but

(ii) excluding an order varying or revoking such an order;**]**

[[F11](e) an order made by the High Court in Northern Ireland in the exercise of its inherent jurisdiction with respect to children—

(i) so far as it gives care of a child to any person or provides for contact with, or the education of, a child; but

(ii) excluding an order varying or discharging such an order;**]**

(2) In this Part "**[**[F1]Part I order**]**" does not include—

[F12](a) . . . . . .

[F13](b) . . . . . .

[F14](c) . . . . . .

[[F15](3) In this Part, "Part I order"—

(a) includes any order which would have been a custody order by virtue of this section in any form in which it was in force at any time before its amendment by the Children Act 1989 **[**[F16]or the Children (Northern Ireland) Order 1995, as the case may be**]**; and

(b) (subject to section 32 and 40 of this Act) excludes any order which would have been excluded from being a custody order by virtue of this section in any such form.**]**

[[F17](3A) In subsection (1)(b)(xi) "permanence order" includes a deemed permanence order having effect by virtue of article 13(1), 14(2), 17(1) or 19(2) of the Adoption and Children (Scotland) Act 2007 (Commencement No. 4, Transitional and Savings Provisions) Order 2009.**]**

(6) Provision may be made by act of sederunt prescribing, in relation to orders within subsection (1)(b) above, what constitutes an application for the purposes of this Part.

Extent Information

E2 This version of this provision extends to England and Wales and Northern Ireland only; a separate version has been created for Scotland only

***Changes to legislation:** Family Law Act 1986 is up to date with all changes known to be in force on or before 30 May 2025. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details) View outstanding changes*

Textual Amendments

F1 Words in S. 1(1) substituted (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 13 para. 62(2)(a)**(with Sch. 14 para. 1(1)); S.I. 1991/828, **art. 3(2)**

F2 S. 1(1)(a) substituted (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 13 para. 63(1)(a)** (with Sch. 14 para. 1(1)); S.I. 1991/828, **art. 3(2)**

F3 S. 1(1)(aa)(ab) inserted (30.12.2005) by Adoption and Children Act 2002 (c. 38), s. 148(1), **Sch. 3 para. 47** (with Sch. 4 paras. 6-8); S.I. 2005/2213, art. 2(o)

F4 S. 1(1)(ac) inserted (22.4.2014) by Children and Families Act 2014 (c. 6), **ss. 9(5)**, 139(6); S.I. 2014/889, art. 4(a) (with transitional provisions in S.I. 2014/1042, arts. 3, 4, 6-10)

F5 Words in s. 1(1)(b) substituted (1.11.1996) by 1995 c. 36, s. 105(4), **Sch. 4 para. 41(2)(a)**; S.I. 1996/2203, art. 3, **Sch.**

F6 S. 1(1)(b)(ii)(iii) repealed (15.7.2011) by The Adoption and Children (Scotland) Act 2007 (Consequential Modifications) Order 2011 (S.I. 2011/1740), art. 1(2), **Sch. 2 Pt. 3**

F7 Words in s. 1(1)(b)(iv) substituted (1.11.1996) by 1995 c. 36, s. 105(4), **Sch. 4 para. 41(2)(b)**; S.I. 1996/2203, art. 3, **Sch.**

F8 S. 1(1)(b)(x)(xi) inserted (15.7.2011) by The Adoption and Children (Scotland) Act 2007 (Consequential Modifications) Order 2011 (S.I. 2011/1740), art. 1(2), **Sch. 2 para. 2(2)**

F9 S. 1(1)(c) substituted (4.11.1996) by S.I. 1995/756, **art. 12(2)(a)(i)**; S.R. 1996/297, **para. 3**

F10 S. 1(1)(d)(e) substituted (14.10.1991) for s. 1(1)(d) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 13 para. 63(1)(b)** (with Sch. 14 para. 1(1); S.I. 1991/828, **art. 3(2)**

F11 S. 1(1)(e) substituted (4.11.1996) by S.I. 1995/756, **art. 12(2)(a)(ii)**; S.R. 1996/297, **para. 3**

F12 S. 1(2)(a) repealed (4.11.1996) by S.I. 1995/756, art. 15, **Sch.**; S.R. 1996/297, **para. 3**

F13 S. 1(2)(b) repealed (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 15** (with Sch. 14 paras. 1(1), 27(4)); S.I. 1991/828, **art. 3(2)**

F14 S. 1(2)(c) repealed (4.11.1996) by S.I. 1995/756, art. 15, **Sch.**; S.R. 1996/297, **para. 3**

F15 S. 1(3) substituted (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 13 para. 63(3)** (with Sch. 14 para. 1(1)); S.I. 1991/828, **art. 3(2)**

F16 Words in s. 1(3) inserted (4.11.1996) by S.I. 1995/756, **art. 12(2)(b)**; S.R. 1996/297, **para. 3**

F17 S. 1(3A) inserted (15.7.2011) by The Adoption and Children (Scotland) Act 2007 (Consequential Modifications) Order 2011 (S.I. 2011/1740), art. 1(2), **Sch. 2 para. 2(3)**

Modifications etc. (not altering text)

C3 S. 1(1)(b)(x) modified (21.12.2018) by The Human Fertilisation and Embryology (Parental Orders) Regulations 2018 (S.I. 2018/1412), reg. 1(2), **Sch. 4 para. 14**

Marginal Citations

M1 1980 c. 44.

M2 1968 c. 49.

M3 1985 c. 60.

1 Orders to which Part I applies. S

(1) Subject to the following provisions of this section, in this Part "**[**F284Part I order**]**" means—

[F285(a) a section 8 order made by a court in England and Wales under the Children Act 1989, other than an order varying or discharging such an order**]**

[F3(aa) a special guardianship order made by a court in England and Wales under the Children Act 1989;

(ab) an order made under section 26 of the Adoption and Children Act 2002 (contact), other than an order varying or revoking such an order**]**

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[F4(ac) an order made under section 51A of the Adoption and Children Act 2002 (post-adoption contact), other than an order varying or revoking such an order;**]**

(b) an order made by a court of civil jurisdiction in Scotland under any enactment or rule of law with respect to the **[**F286residence, custody, care or control of a child, contact with or**]**, access to a child or the education or upbringing of a child, excluding—

(i) an order committing the care of a child to a local authority or placing a child under the supervision of a local authority;

F287(ii) . . . . . .

F288(iii) . . . . . .

(iv) an order **[**F289giving parental responsibilities and parental rights in relation to**]** a child made in the course of proceedings for the adoption of the child (other than an order made following the making of a direction under section 53(1) of the Children Act 1975);

(v) an order made under the M20Education (Scotland) Act 1980;

(vi) an order made under Part II or III of the M21Social Work (Scotland) Act 1968;

(vii) an order made under the M22Child Abduction and Custody Act 1985;

(viii) an order for the delivery of a child or other order for the enforcement of a **[**F284Part I order**]**;

(ix) an order relating to the **[**F290guardianship**]**of a child;

[F291(x) an adoption order (as defined in section 28(1) of the Adoption and Children (Scotland) Act 2007 (asp 4);

(xi) a permanence order (as defined in subsection (2) of section 80 of that Act) which includes provision such as is mentioned in paragraph (c) of that subsection**]**

[F292(c) an Article 8 order made by a court in Northern Ireland under the Children (Northern Ireland) Order 1995, other than an order varying or discharging such an order;**]**

[F293(d) an order made by a court in England and Wales in the exercise of the inherent jurisdiction of the High Court with respect to children—

(i) so far as it gives care of a child to any person or provides for contact with, or the education of, a child; but

(ii) excluding an order varying or revoking such an order;**]**

[F294(e) an order made by the High Court in Northern Ireland in the exercise of its inherent jurisdiction with respect to children—

(i) so far as it gives care of a child to any person or provides for contact with, or the education of, a child; but

(ii) excluding an order varying or discharging such an order;**]**

(2) In this Part "**[**F284Part I order**]**" does not include—

F295(a) . . . . . .

F296(b) . . . . . .

F297(c) . . . . . .

[F298(3) In this Part, "Part I order"—

(a) includes any order which would have been a custody order by virtue of this section in any form in which it was in force at any time before its amendment

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by the Children Act 1989 **[**[F299]or the Children (Northern Ireland) Order 1995, as the case may be**]**; and

(b) (subject to section 32 and 40 of this Act) excludes any order which would have been excluded from being a custody order by virtue of this section in any such form.**]**

[[F17](3A) In subsection (1)(b)(xi) "permanence order" includes a deemed permanence order having effect by virtue of article 13(1), 14(2), 17(1) or 19(2) of the Adoption and Children (Scotland) Act 2007 (Commencement No. 4, Transitional and Savings Provisions) Order 2009.**]**

(6) Provision may be made by act of sederunt prescribing, in relation to orders within subsection (1)(b) above, what constitutes an application for the purposes of this Part.

Extent Information

E3 This version of this provision extends to Scotland only; a separate version has been created for England and Wales and Northern Ireland only

Textual Amendments

F3 S. 1(1)(aa)(ab) inserted (30.12.2005) by Adoption and Children Act 2002 (c. 38), s. 148(1), **Sch. 3 para. 47** (with Sch. 4 paras. 6-8); S.I. 2005/2213, art. 2(o)

F4 S. 1(1)(ac) inserted (22.4.2014) by Children and Families Act 2014 (c. 6), **ss. 9(5)**, 139(6); S.I. 2014/889, art. 4(a) (with transitional provisions in S.I. 2014/1042, arts. 3, 4, 6-10)

F17 S. 1(3A) inserted (15.7.2011) by The Adoption and Children (Scotland) Act 2007 (Consequential Modifications) Order 2011 (S.I. 2011/1740), art. 1(2), **Sch. 2 para. 2(3)**

F284 Words in S. 1(1) substituted (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 13 para. 62(2)(a)**(with Sch. 14 para. 1(1)); S.I. 1991/828, **art. 3(2)**

F285 S. 1(1)(a) substituted (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 13 para. 63(1)(a)** (with Sch. 14 para. 1(1)); S.I. 1991/828, **art. 3(2)**

F286 Words in s. 1(1)(b) substituted (1.11.1996) by 1995 c. 36, s. 105(4), **Sch. 4 para. 41(2)(a)**; S.I. 1996/2203, art. 3(3), **Sch.**

F287 S. 1(1)(b)(ii) repealed (S.) (28.9.2009) by Adoption and Children (Scotland) Act 2007 (asp 4), s. 121(2), **sch. 3**; S.S.I. 2009/267, arts. 1(2), 2 (with arts. 3-21) (as amended (7.5.2012) by S.S.I. 2012/99, art. 2)

F288 S. 1(1)(b)(iii) repealed (S.) (28.9.2009) by Adoption and Children (Scotland) Act 2007 (asp 4), s. 121(2), **sch. 3**; S.S.I. 2009/267, arts. 1(2), 2 (with arts. 3-21) (as amended (7.5.2012) by S.S.I. 2012/99, art. 2)

F289 Words in s. 1(1)(b)(iv) substituted (1.11.1996) by 1995 c. 36, s. 105(4), **Sch. 4 para. 41(2)(b)**; S.I. 1996/2203, art. 3(3), **Sch.**

F290 Words in s. 1(1)(b)(ix) substituted (S.) (25.9.1991) by Age of Legal Capacity (Scotland) Act 1991 (c. 50, SIF 49:8), ss. 10(1), 11(2), **Sch. 1 para. 44**.

F291 S. 1(1)(b)(x)(xi) inserted (S.) (28.9.2009) by Adoption and Children (Scotland) Act 2007 (asp 4), s. 121(2), **sch. 2 para. 5**; S.S.I. 2009/267, arts. 1(2), 2 (with arts. 3-21) (as amended (7.5.2012) by S.S.I. 2012/99, art. 2)

F292 S. 1(1)(c) substituted (4.11.1996) by S.I. 1995/756, **art. 12(2)(a)(i)**; S.R. 1996/297, **para. 3**

F293 S. 1(1)(d)(e) substituted (14.10.1991) for s. 1(1)(d) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 13 para. 63(1)(b)** (with Sch. 14 para. 1(1); S.I. 1991/828, **art. 3(2)**

F294 S. 1(1)(e) substituted (4.11.1996) by S.I. 1995/756, **art. 12(2)(a)(ii)**; S.R. 1996/297, **para. 3**

F295 S. 1(2)(a) repealed (4.11.1996) by S.I. 1995/756, art. 15, **Sch.**; S.R. 1996/297, **para. 3**

F296 S. 1(2)(b) repealed (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 15** (with Sch. 14 paras. 1(1), 27(4)); S.I. 1991/828, **art. 3(2)**

F297 S. 1(2)(c) repealed (4.11.1996) by S.I. 1995/756, art. 15, **Sch.**; S.R. 1996/297, **para. 3**

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F298 S. 1(3) substituted (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 13 para. 63(3)** (with Sch. 14 para. 1(1)); S.I. 1991/828, **art. 3(2)**

F299 Words in s. 1(3) inserted (4.11.1996) by S.I. 1995/756, **art. 12(2)(b)**; S.R. 1996/297, **para. 3**

Modifications etc. (not altering text)

C3 S. 1(1)(b)(x) modified (21.12.2018) by The Human Fertilisation and Embryology (Parental Orders) Regulations 2018 (S.I. 2018/1412), reg. 1(2), **Sch. 4 para. 14**

C12 S. 1(1)(b)(x) modified (6.4.2010) by The Human Fertilisation and Embryology (Parental Orders) Regulations 2010 (S.I. 2010/985), regs. 1(1), 5, **Sch. 4**

Marginal Citations

M20 1980 c. 44.

M21 1968 c. 49.

M22 1985 c. 60.

CHAPTER II

JURISDICTION OF COURTS IN ENGLAND AND WALES

[F18[F19]2 Jurisdiction: general.

(1) A court in England and Wales shall not make a section 1(1)(a) order with respect to a child unless—

(a) it has jurisdiction under F20...[F21 the Hague Convention] , or

(b) [F22the Hague Convention does not apply] but—

(i) the question of making the order arises in or in connection with matrimonial proceedings [F23or civil partnership proceedings] and the condition in section 2A of this Act is satisfied, or

(ii) the condition in section 3 of this Act is satisfied.]

F24[(2A) A court in England and Wales shall not have jurisdiction to make a special guardianship order under the Children Act 1989 unless the condition in section 3 of this Act is satisfied.

(2B) A court in England and Wales shall not have jurisdiction to make an order under section 26 of the Adoption and Children Act 2002 unless the condition in section 3 of this Act is satisfied.]

F25[(2C) A court in England and Wales shall not have jurisdiction to make an order under section 51A of the Adoption and Children Act 2002 unless—

(a) it has jurisdiction under F26... the Hague Convention, or

(b) [F27the Hague Convention does not apply] but the condition in section 3 of this Act is satisfied.]

[F28(3) A court in England and Wales shall not make a section 1(1)(d) order unless—

(a) it has jurisdiction under F29...[F30 the Hague Convention] , or

(b) [F31the Hague Convention does not apply] but—

(i) the condition in section 3 of this Act is satisfied, or

(ii) the child concerned is present in England and Wales on the relevant date and the court considers that the immediate exercise of its powers is necessary for his protection.]]

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Textual Amendments

F18 S. 2 substituted (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 13 para. 64** (with Sch. 14 para. 1(1)); S.I. 1991/828,art. 3(2)

F19 S. 2(1) substituted for s. 2(1)(2) (1.3.2005) by The European Communities (Jurisdiction and Judgments in Matrimonial and Parental Responsibility Matters) Regulations 2005 (S.I. 2005/265), regs. 1, **8(2)** (with reg. 20)

F20 Words in s. 2(1)(a) omitted (31.12.2020) by virtue of The Jurisdiction and Judgments (Family) (Amendment etc.) (EU Exit) Regulations 2019 (S.I. 2019/519), reg. 1(1), **Sch. para. 15(2)(a)** (with reg. 8) (as amended by S.I. 2020/1574, regs. 1, 5(2)); 2020 c. 1, Sch. 5 para. 1(1)

F21 Words in s. 2(1)(a) inserted (1.11.2012) by The Parental Responsibility and Measures for the Protection of Children (International Obligations) (England and Wales and Northern Ireland) Regulations 2010 (S.I. 2010/1898), reg. 1(2), **Sch. para. 5(a)**

F22 Words in s. 2(1)(b) substituted (31.12.2020) by The Jurisdiction and Judgments (Family) (Amendment etc.) (EU Exit) Regulations 2019 (S.I. 2019/519), reg. 1(1), **Sch. para. 15(2)(b)** (with reg. 8) (as amended by S.I. 2020/1574, regs. 1, 5(2)); 2020 c. 1, Sch. 5 para. 1(1)

F23 Words in s. 2(1)(b)(i) inserted (5.12.2005) by The Civil Partnership (Family Proceedings and Housing Consequential Amendments) Order 2005 (S.I. 2005/3336), arts. 1, **5** (with art. 2(4))

F24 S. 2(2A)(2B) inserted (30.12.2005) by Adoption and Children Act 2002 (c. 38), s. 148(1), **Sch. 3 para. 48** (with Sch. 4 paras. 6-8); S.I. 2005/2213, art. 2(o)

F25 S. 2(2C) inserted (22.4.2014) by Children and Families Act 2014 (c. 6), **ss. 9(6)**, 139(6); S.I. 2014/889, art. 4(a) (with transitional provisions in S.I. 2014/1042, arts. 3, 4, 6-10)

F26 Words in s. 2(2C)(a) omitted (31.12.2020) by virtue of The Jurisdiction and Judgments (Family) (Amendment etc.) (EU Exit) Regulations 2019 (S.I. 2019/519), reg. 1(1), **Sch. para. 15(2)(a)** (with reg. 8) (as amended by S.I. 2020/1574, regs. 1, 5(2)); 2020 c. 1, Sch. 5 para. 1(1)

F27 Words in s. 2(2C)(b) substituted (31.12.2020) by The Jurisdiction and Judgments (Family) (Amendment etc.) (EU Exit) Regulations 2019 (S.I. 2019/519), reg. 1(1), **Sch. para. 15(2)(b)** (with reg. 8) (as amended by S.I. 2020/1574, regs. 1, 5(2)); 2020 c. 1, Sch. 5 para. 1(1)

F28 S. 2(3) substituted (1.3.2005) by The European Communities (Jurisdiction and Judgments in Matrimonial and Parental Responsibility Matters) Regulations 2005 (S.I. 2005/265), regs. 1, **8(3)** (with reg. 20)

F29 Words in s. 2(3)(a) omitted (31.12.2020) by virtue of The Jurisdiction and Judgments (Family) (Amendment etc.) (EU Exit) Regulations 2019 (S.I. 2019/519), reg. 1(1), **Sch. para. 15(2)(a)** (with reg. 8) (as amended by S.I. 2020/1574, regs. 1, 5(2)); 2020 c. 1, Sch. 5 para. 1(1)

F30 Words in s. 2(3)(a) inserted (1.11.2012) by The Parental Responsibility and Measures for the Protection of Children (International Obligations) (England and Wales and Northern Ireland) Regulations 2010 (S.I. 2010/1898), reg. 1(2), **Sch. para. 5(c)**

F31 Words in s. 2(3)(b) substituted (31.12.2020) by The Jurisdiction and Judgments (Family) (Amendment etc.) (EU Exit) Regulations 2019 (S.I. 2019/519), reg. 1(1), **Sch. para. 15(2)(b)** (with reg. 8) (as amended by S.I. 2020/1574, regs. 1, 5(2)); 2020 c. 1, Sch. 5 para. 1(1)

[F32 2A Jurisdiction in or in connection with matrimonial proceedings [F33 or civil partnership proceedings] .

(1) The condition referred to in section 2(1) of this Act is that the F34... proceedings are proceedings in respect of the marriage **[**F35 or civil partnership**]** of the parents of the child concerned and—

(a) the proceedings—

(i) are proceedings for divorce or nullity of marriage **[**F36, or dissolution or annulment of a civil partnership**]**, and

(ii) are continuing;

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(b) the proceedings—

(i) are proceedings for judicial separation **[**F37or legal separation of civil partners**]**,

(ii) are continuing,

and the jurisdiction of the court is not excluded by subsection (2) below; or

(c) the proceedings have been dismissed after the beginning of the trial but—

(i) the section 1(1)(a) order is being made forthwith, or

(ii) the application for the order was made on or before the dismissal.

[F38(2) For the purposes of subsection (1)(b) above, the jurisdiction of the court is excluded if—

(a) after the grant of a decree of judicial separation **[**F39or the making of a judicial separation order**]**, on the relevant date, proceedings for divorce or nullity in respect of the marriage, or

(b) after the making of a separation order, on the relevant date, proceedings for dissolution or annulment in respect of the civil partnership,

are continuing in Scotland or Northern Ireland.**]**

(3) Subsection (2) above shall not apply if the court in which the other proceedings there referred to are continuing has made—

(a) an order under section 13(6) or **[**F40 19A(4)**]** of this Act (not being an order made by virtue of section 13(6)(a)(i)), or

(b) an order under section 14(2) or 22(2) of this Act which is recorded as being made for the purpose of enabling Part I proceedings to be taken in England and Wales with respect to the child concerned.

(4) Where a court—

(a) has jurisdiction to make a section 1(1)(a) order **[**F41by virtue of section 2(1)(b)(i) of this Act**]**, but

(b) considers that it would be more appropriate for Part I matters relating to the child to be determined outside England and Wales,

the court may by order direct that, while the order under this subsection is in force, no section 1(1)(a) order shall be made by any court **[**F42by virtue of section 2(1)(b)(i) of this Act**]**.**]**

Textual Amendments

F32 S. 2A substituted (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 13 para. 64** (with Sch. 14 para. 1(1)); S.I. 1991/828, **art. 3(2)**

F33 Words in s. 2A heading inserted (5.12.2005) by The Civil Partnership (Family Proceedings and Housing Consequential Amendments) Order 2005 (S.I. 2005/3336), arts. 1, **6** (with art. 2(4))

F34 Word in s. 2A(1) omitted (5.12.2005) by virtue of The Civil Partnership (Family Proceedings and Housing Consequential Amendments) Order 2005 (S.I. 2005/3336), arts. 1, **7(2)(a)** (with art. 2(4))

F35 Words in s. 2A(1) inserted (5.12.2005) by The Civil Partnership (Family Proceedings and Housing Consequential Amendments) Order 2005 (S.I. 2005/3336), arts. 1, **7(2)(b)** (with art. 2(4))

F36 Words in s. 2A(1)(a)(i) inserted (5.12.2005) by The Civil Partnership (Family Proceedings and Housing Consequential Amendments) Order 2005 (S.I. 2005/3336), arts. 1, **7(2)(c)** (with art. 2(4))

F37 Words in s. 2A(1)(b)(i) inserted (5.12.2005) by The Civil Partnership (Family Proceedings and Housing Consequential Amendments) Order 2005 (S.I. 2005/3336), arts. 1, **7(2)(d)** (with art. 2(4))

F38 S. 2A(2) substituted (5.12.2005) by The Civil Partnership (Family Proceedings and Housing Consequential Amendments) Order 2005 (S.I. 2005/3336), arts. 1, **7(3)** (with art. 2(4))

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F39 Words in s. 2A(2)(a) inserted (6.4.2022) by Divorce, Dissolution and Separation Act 2020 (c. 11), s. 8(1)(8), **Sch. para. 51(2)**; S.I. 2022/283, reg. 2

F40 Words in s. 2A(3)(a) substituted (4.11.1996) by S.I. 1995/756, **art. 12(5)**; S.R. 1996/297, **para. 3**

F41 Words in s. 2A(4) substituted (1.3.2005) by The European Communities (Jurisdiction and Judgments in Matrimonial and Parental Responsibility Matters) Regulations 2005 (S.I. 2005/265), regs. 1, **9(a)** (with reg. 20)

F42 Words in s. 2A(4) substituted (1.3.2005) by The European Communities (Jurisdiction and Judgments in Matrimonial and Parental Responsibility Matters) Regulations 2005 (S.I. 2005/265), regs. 1, **9(b)** (with reg. 20)

3 Habitual residence or presence of child.

(1) The condition referred to in **[**F43section 2(1)(b)(ii)**]** of this Act is that on the relevant date the child concerned—

(a) is habitually resident in England and Wales, or

(b) is present in England and Wales and is not habitually resident in any part of the United Kingdom,

and, in either case, the jurisdiction of the court is not excluded by subsection (2) below.

(2) For the purposes of subsection (1) above, the jurisdiction of the court is excluded if, on the relevant date, **[**F44matrimonial proceedings**][**F45or civil partnership proceedings**]** are continuing in a court in Scotland or Northern Ireland in respect of the marriage **[**F46or civil partnership**]** of the parents of the child concerned.

(3) Subsection (2) above shall not apply if the court in which the other proceedings there referred to are continuing has made—

(a) an order under section 13(6) or **[**F47 19A(4)**]** of this Act (not being an order made by virtue of section 13(6)(a)(i)), or

(b) an order under section 14(2) or 22(2) of this Act which is recorded as made for the purpose of enabling **[**F48Part I proceedings with respect to**]** the child concerned to be taken in England and Wales,

and that order is in force.

F49(4) . . . . . .

(5) . . . . . .

(6) . . . . . .

Textual Amendments

F43 Words in s. 3(1) substituted (1.3.2005) by The European Communities (Jurisdiction and Judgments in Matrimonial and Parental Responsibility Matters) Regulations 2005 (S.I. 2005/265), regs. 1, **10** (with reg. 20)

F44 Words in s. 3(2) substituted (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 13 para. 65(2)** (with Sch. 14 para. 1(1)); S.I. 1991/828, **art. 3(2)**

F45 Words in s. 3(2) inserted (5.12.2005) by The Civil Partnership (Family Proceedings and Housing Consequential Amendments) Order 2005 (S.I. 2005/3336), arts. 1, **8(a)** (with art. 2(4))

F46 Words in s. 3(2) inserted (5.12.2005) by The Civil Partnership (Family Proceedings and Housing Consequential Amendments) Order 2005 (S.I. 2005/3336), arts. 1, **8(b)** (with art. 2(4))

F47 Words in s. 3(3)(a) substituted (4.11.1996) by S.I. 1995/756, **art. 12(5)**; S.R. 1996/297, **art. 3**

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F48 Words in s. 3(3)(b) substituted (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 13 para. 62(2)(b)** (with Sch. 14 para. 1(1); S.I. 1991/828, **art. 3(2)**

F49 S. 3(4)–(6) repealed (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 15** (with Sch. 14 paras. 1(1), 27(4)); S.I. 1991/828, **art. 3(2)**

F50 **4** . . . . . .

Textual Amendments

F50 S. 4 repealed (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 15** (with Sch. 14 para. 1(1), 27(4)); S.I. 1991/828, **art. 3(2)**

5 Power of court to refuse application or stay proceedings.

(1) A court in England and Wales which has jurisdiction to make a **[**F51Part I order**]** may refuse an application for the order in any case where the matter in question has already been determined in proceedings outside England and Wales.

(2) Where, at any stage of the proceedings on an application made to a court in England and Wales for a **[**F51Part I order**]**, or for the variation of a **[**F51Part I order**]**, F52... it appears to the court—

(a) that proceedings with respect to the matters to which the application relates are continuing outside England and Wales, F53...

(b) that it would be more appropriate for those matters to be determined in proceedings to be taken outside England and Wales, **[**F54or**]**

F55(c) . . . . . .

[F56(d) that it should exercise its powers under Article 8 of the Hague Convention (request to authority in another Contracting State to assume jurisdiction),**]**

the court may stay the proceedings on the application **[**F57or (as the case may be) exercise its powers under F58... **[**F59 Article 8 of the Hague Convention**]]**.

[F60(2A) If the proceedings on the application are proceedings in which **[**F61an**]** activity direction has been made under section 11A of the Children Act 1989 (or an enforcement order has been made under section 11J of that Act), the court may when granting a stay under or by virtue of subsection (2) also suspend **[**F62the**]** activity direction (or the enforcement order).**]**

(3) The court may remove a stay granted **[**F63by virtue of subsection (2)(a) or (b) above**]** if it appears to the court that there has been unreasonable delay in the taking or prosecution of the other proceedings referred to in that subsection, or that those proceedings are stayed, sisted or concluded.

F64(3A) . . . . . .

[F65(3AA) The court may remove a stay granted in order for it to exercise its powers under Article 8 of the Hague Convention, and withdraw any request made by it to an authority in another Contracting State to assume jurisdiction, if—

(a) the authority in the other Contracting State does not assume jurisdiction within the period for which the court granted the stay, or

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(b) the parties do not, within the period specified by the court, request the authority in the other Contracting State to assume jurisdiction.**]**

[F66(3B) If the stay removed under subsection (3) F67... is a stay in relation to which the court suspended **[**F68an**]** activity direction made under section 11A of the Children Act 1989 (or an enforcement order made under section 11J of that Act), the court may when removing the stay under subsection (3) F69**[**F70... or (3AA)**]** also bring the suspension to an end.**]**

(4) Nothing in this section **[**F71so far as it relates to proceedings not governed by the **[**F72Hague Convention**]]** shall affect any power exercisable apart from this section to refuse an application or to grant or remove a stay.

Textual Amendments

F51 Words in S. 5(1)(2) substituted (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 13 para. 62(2)(a)** (with Sch. 14 para. 1(1)); S.I. 1991/828, **art. 3(2)**

F52 Words in s. 5(2) omitted (1.3.2005) by virtue of The European Communities (Jurisdiction and Judgments in Matrimonial and Parental Responsibility Matters) Regulations 2005 (S.I. 2005/265), regs. 1, **11(2)** (with reg. 20)

F53 Word in s. 5(2)(a) left out (1.11.2012) by virtue of The Parental Responsibility and Measures for the Protection of Children (International Obligations) (England and Wales and Northern Ireland) Regulations 2010 (S.I. 2010/1898), reg. 1(2), **Sch. para. 6(1)(a)**

F54 Word in s. 5(2)(b) inserted (31.12.2020) by The Jurisdiction and Judgments (Family) (Amendment etc.) (EU Exit) Regulations 2019 (S.I. 2019/519), reg. 1(1), **Sch. para. 15(3)(a)(i)** (with reg. 8) (as amended by S.I. 2020/1574, regs. 1, 5(2)); 2020 c. 1, Sch. 5 para. 1(1)

F55 S. 5(2)(c) omitted (31.12.2020) by virtue of The Jurisdiction and Judgments (Family) (Amendment etc.) (EU Exit) Regulations 2019 (S.I. 2019/519), reg. 1(1), **Sch. para. 15(3)(a)(ii)** (with reg. 8) (as amended by S.I. 2020/1574, regs. 1, 5(2)); 2020 c. 1, Sch. 5 para. 1(1)

F56 S. 5(2)(d) and word inserted (1.11.2012) by The Parental Responsibility and Measures for the Protection of Children (International Obligations) (England and Wales and Northern Ireland) Regulations 2010 (S.I. 2010/1898), reg. 1(2), **Sch. para. 6(1)(c)**

F57 Words in s. 5(2) inserted (1.3.2005) by The European Communities (Jurisdiction and Judgments in Matrimonial and Parental Responsibility Matters) Regulations 2005 (S.I. 2005/265), regs. 1, **11(4)** (with reg. 20)

F58 Words in s. 5(2) omitted (31.12.2020) by virtue of The Jurisdiction and Judgments (Family) (Amendment etc.) (EU Exit) Regulations 2019 (S.I. 2019/519), reg. 1(1), **Sch. para. 15(3)(a)(iii)** (with reg. 8) (as amended by S.I. 2020/1574, regs. 1, 5(2)); 2020 c. 1, Sch. 5 para. 1(1)

F59 Words in s. 5(2) inserted (1.11.2012) by The Parental Responsibility and Measures for the Protection of Children (International Obligations) (England and Wales and Northern Ireland) Regulations 2010 (S.I. 2010/1898), reg. 1(2), **Sch. para. 6(1)(d)**

F60 S. 5(2A) inserted (8.12.2008) by Children and Adoption Act 2006 (c. 20), s. 17(2), **Sch. 2 para. 3(2)**; S.I. 2008/2870, art. 2(2)(e)

F61 Word in s. 5(2A) substituted (22.4.2014) by Children and Families Act 2014 (c. 6), s. 139(6), **Sch. 2 para. 50(2)(a)**; S.I. 2014/889, art. 4(f) (with transitional provisions in S.I. 2014/1042, arts. 3, 4, 6-10)

F62 Word in s. 5(2A) substituted (22.4.2014) by Children and Families Act 2014 (c. 6), s. 139(6), **Sch. 2 para. 50(2)(b)**; S.I. 2014/889, art. 4(f) (with transitional provisions in S.I. 2014/1042, arts. 3, 4, 6-10)

F63 Words in s. 5(3) substituted (1.3.2005) by The European Communities (Jurisdiction and Judgments in Matrimonial and Parental Responsibility Matters) Regulations 2005 (S.I. 2005/265), regs. 1, **11(5)** (with reg. 20)

F64 S. 5(3A) omitted (31.12.2020) by virtue of The Jurisdiction and Judgments (Family) (Amendment etc.) (EU Exit) Regulations 2019 (S.I. 2019/519), reg. 1(1), **Sch. para. 15(3)(b)** (with reg. 8) (as amended by S.I. 2020/1574, regs. 1, 5(2)); 2020 c. 1, Sch. 5 para. 1(1)

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F65 S. 5(3AA) inserted (1.11.2012) by The Parental Responsibility and Measures for the Protection of Children (International Obligations) (England and Wales and Northern Ireland) Regulations 2010 (S.I. 2010/1898), reg. 1(2), **Sch. para. 6(2)**

F66 S. 5(3B) inserted (8.12.2008) by Children and Adoption Act 2006 (c. 20), s. 17(2), **Sch. 2 para. 3(3)**; S.I. 2008/2870, art. 2(2)(e)

F67 Words in s. 5(3B) omitted (31.12.2020) by virtue of The Jurisdiction and Judgments (Family) (Amendment etc.) (EU Exit) Regulations 2019 (S.I. 2019/519), reg. 1(1), **Sch. para. 15(3)(c)(i)** (with reg. 8) (as amended by S.I. 2020/1574, regs. 1, 5(2)); 2020 c. 1, Sch. 5 para. 1(1)

F68 Word in s. 5(3B) substituted (22.4.2014) by Children and Families Act 2014 (c. 6), s. 139(6), **Sch. 2 para. 50(3)**; S.I. 2014/889, art. 4(f) (with transitional provisions in S.I. 2014/1042, arts. 3, 4, 6-10)

F69 Word in s. 5(3B) omitted (31.12.2020) by virtue of The Jurisdiction and Judgments (Family) (Amendment etc.) (EU Exit) Regulations 2019 (S.I. 2019/519), reg. 1(1), **Sch. para. 15(3)(c)(ii)** (with reg. 8) (as amended by S.I. 2020/1574, regs. 1, 5(2)); 2020 c. 1, Sch. 5 para. 1(1)

F70 Words in s. 5(3B) substituted (1.11.2012) by The Parental Responsibility and Measures for the Protection of Children (International Obligations) (England and Wales and Northern Ireland) Regulations 2010 (S.I. 2010/1898), reg. 1(2), **Sch. para. 6(3)**

F71 Words in s. 5(4) inserted (1.3.2005) by The European Communities (Jurisdiction and Judgments in Matrimonial and Parental Responsibility Matters) Regulations 2005 (S.I. 2005/265), regs. 1, **11(7)** (with reg. 20)

F72 Words in s. 5(4) substituted (31.12.2020) by S.I. 2019/519, **Sch. para. 15(3)(d)** (as amended by The Jurisdiction, Judgments and Applicable Law (Amendment) (EU Exit) Regulations 2020 (S.I. 2020/1574), regs. 1, **5(3)(f)(i)**)

6 Duration and variation of custody orders.

(1) **[**F73Part I order**]** made by a court in Scotland or Northern Ireland (or a variation of such an order) comes into force with respect to a child at a time when a **[**F73Part I order**]** made by a court in England and Wales has effect with respect to him, the latter order shall cease to have effect so far as it makes provision for any matter for which the same or different provision is made by (or by the variation of) the order made by the court in Scotland or Northern Ireland.

(2) Where by virtue of subsection (1) above a **[**F73Part I order**]** has ceased to have effect so far as it makes provision for any matter, a court in England or Wales shall not have jurisdiction to vary that order so as to make provision for that matter.

[F74(3) A court in England and Wales shall not have jurisdiction to vary a Part I order if, on the relevant date, matrimonial proceedings **[**F75or civil partnership proceedings**]** are continuing in Scotland or Northern Ireland in respect of the marriage **[**F76or civil partnership**]** of the parents of the child concerned.

[F77(3A) Subsection (3) shall not apply if—

(a) the Part 1 order was made in or in connection with proceedings—

(i) for divorce or nullity in England and Wales in respect of the marriage of the parents of the child concerned; or

(ii) for dissolution or annulment in England and Wales in respect of the civil partnership of the parents of the child concerned; and

(b) those proceedings are continuing.**]**

[F77(3B) Subsection (3) shall not apply if—

(a) the Part 1 order was made in or in connection with proceedings—

(i) for judicial separation in England and Wales; or

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(ii) for a separation order in England and Wales; and

(b) those proceedings are continuing; and

(c) as the case may be, the **[**F78judicial separation order**]** or the separation order has not yet been made.**]]**

(4) Subsection (3) above shall not apply if the court in which the proceedings there referred to are continuing has made—

(a) an order under section 13(6) or **[**F79 19A(4)**]** of this Act (not being an order made by virtue of section 13(6)(a)(i)), or

(b) an order under section 14(2) or 22(2) of this Act which is recorded as made for the purpose of enabling **[**F80Part I proceedings with respect to**]** the child concerned to be taken in England and Wales,

and that order is in force.

(5) Subsection (3) above shall not apply in the case of a **[**F81variation of a section 1(1)(d) order if the child concerned**]** is present in England and Wales on the relevant date and the court considers that the immediate exercise of its powers is necessary for his protection.

[F82(5A) Subsection (7) below applies where a Part I order which is a child arrangements order (within the meaning of section 8(1) of the Children Act 1989) ceases by virtue of subsection (1) above to name a person as someone with whom a child is to live.**]**

[F83(6) Subsection (7) below **[**F84also**]** applies where a Part I order which is—

F85(a) . . . . . .

(b) an order made in the exercise of the High Court's inherent jurisdiction with respect to children by virtue of which a person has care of a child, or

(c) an order—

(i) of a kind mentioned in section 1(3)(a) of this Act,

(ii) under which a person is entitled to the actual possession of a child,

ceases to have effect in relation to that person by virtue of subsection (1) above.

(7) Where this subsection applies, any family assistance order made under section 16 of the Children Act 1989 with respect to the child shall also cease to have effect.

(8) For the purposes of subsection (7) above the reference to a family assistance order under section 16 of the Children Act 1989 shall be deemed to include a reference to an order for the supervision of a child made under—

(a) section 7(4) of the Family Law Reform Act 1969,

(b) section 44 of the Matrimonial Causes Act 1973,

(c) section 2(2)(a) of the Guardianship Act 1973,

(d) section 34(5) or 36(3)(b) of the Children Act 1975, or

(e) section 9 of the Domestic Proceedings and Magistrates' Courts Act 1978;

but this subsection shall cease to have effect once all such orders for the supervision of children have ceased to have effect in accordance with Schedule 14 to the Children Act 1989.**]**

Textual Amendments

F73 Words in S. 6(1)(2) substituted (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 13 para. 62(2)(a)** (with Sch. 14 para. 1(1)); S.I. 1991/828, **art. 3(2)**

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F74 S. 6(3)–(3B) substituted (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 13 para. 66(1)** (with Sch. 14 para. 1(1)); S.I. 1991/828, **art. 3(2)**

F75 Words in s. 6(3) inserted (5.12.2005) by The Civil Partnership (Family Proceedings and Housing Consequential Amendments) Order 2005 (S.I. 2005/3336), arts. 1, **9(2)(a)** (with art. 2(4))

F76 Words in s. 6(3) inserted (5.12.2005) by The Civil Partnership (Family Proceedings and Housing Consequential Amendments) Order 2005 (S.I. 2005/3336), arts. 1, **9(2)(b)** (with art. 2(4))

F77 S. 6(3A)(3B) substituted (5.12.2005) by The Civil Partnership (Family Proceedings and Housing Consequential Amendments) Order 2005 (S.I. 2005/3336), arts. 1, **9(3)** (with art. 2(4))

F78 Words in s. 6(3B)(c) substituted (6.4.2022) by Divorce, Dissolution and Separation Act 2020 (c. 11), s. 8(1)(8), **Sch. para. 51(3)** (with s. 8(5)); S.I. 2022/283, reg. 2

F79 Words in s. 6(4)(a) substituted (4.11.1996) by S.I. 1995/756, **art. 12(5)**; S.R. 1996/297, **para. 3**

F80 Words in S. 6(4) substituted (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 13 para. 62(2)(b)** (with Sch. 14 para. 1(1)); S.I. 1991/828, **art. 3(2)**

F81 Words in S. 6(5) substituted (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 13 para. 66(2)** (with Sch. 14 para. 1(1)); S.I. 1991/828, **art. 3(2)**

F82 S. 6(5A) inserted (22.4.2014) by Children and Families Act 2014 (c. 6), s. 139(6), **Sch. 2 para. 51(2)**; S.I. 2014/889, art. 4(f) (with transitional provisions in S.I. 2014/1042, arts. 3, 4, 6-10)

F83 S. 6(6)–(8) substituted (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 13 para. 66(3)** (with Sch. 14 para. 1(1)); S.I. 1991/828, **art. 3(2)**

F84 Word in s. 6(6) inserted (22.4.2014) by Children and Families Act 2014 (c. 6), s. 139(6), **Sch. 2 para. 51(3)(a)**; S.I. 2014/889, art. 4(f) (with transitional provisions in S.I. 2014/1042, arts. 3, 4, 6-10)

F85 S. 6(6)(a) omitted (22.4.2014) by virtue of Children and Families Act 2014 (c. 6), s. 139(6), **Sch. 2 para. 51(3)(b)**; S.I. 2014/889, art. 4(f) (with transitional provisions in S.I. 2014/1042, arts. 3, 4, 6-10)

[F86 7 Interpretation of Chapter II.

In this Chapter—

(a) "child" means a person who has not attained the age of eighteen;

[F87(aa) "civil partnership proceedings" means proceedings for the dissolution or annulment of a civil partnership or for legal separation of the civil partners;**]**

(b) "matrimonial proceedings" means proceedings for divorce, nullity of marriage or judicial separation;

(c) "the relevant date" means, in relation to the making or variation of an order—

(i) where an application is made for an order to be made or varied, the date of the application (or first application, if two or more are determined together), and

(ii) where no such application is made, the date on which the court is considering whether to make or, as the case may be, vary the order; and

(d) "section 1(1)(a) order" and "section 1(1)(d) order" mean orders falling within section 1(1)(a) and (d) of this Act respectively.**]**

Textual Amendments

F86 S. 7 substituted (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 13 para. 67** (with Sch. 14 para. 1(1)); S.I. 1991/828, **art. 3(2)**

F87 S. 7(aa) inserted (5.12.2005) by The Civil Partnership (Family Proceedings and Housing Consequential Amendments) Order 2005 (S.I. 2005/3336), arts. 1, **10** (with art. 2(4))

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CHAPTER III

JURISDICTION OF COURTS IN SCOTLAND

8 Jurisdiction in independent proceedings.

A court in Scotland may entertain an application for a **[**F88Part I order**]** otherwise than in matrimonial **[**F89or civil partnership**]** proceedings only if it has jurisdiction under section 9, 10, 12 or 15(2) of this Act.

Textual Amendments

F88 Words in s. 8 substituted (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 13 para. 62(2)(a)** (with Sch. 14 para. 1(1)); S.I. 1991/828, **art. 3(2)**

F89 Words in s. 8 inserted (5.12.2005) by The Civil Partnership Act 2004 (Consequential Amendments) (Scotland) Order 2005 (S.S.I. 2005/623), arts. 1, **13**

9 Habitual residence.

Subject to section 11 of this Act, an application for a **[**F90Part I order**]** otherwise than in matrimonial **[**F91or civil partnership**]** proceedings may be entertained by—

(a) the Court of Session if, on the date of the application, the child concerned is habitually resident in Scotland;

(b) the sheriff if, on the date of the application, the child concerned is habitually resident in the sheriffdom.

Textual Amendments

F90 Words in S. 9 substituted (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 13 para. 62(2)(a)** (with Sch. 14 para. 1(1)); S.I. 1991/828, **art. 3(2)**

F91 Words in s. 9 inserted (5.12.2005) by The Civil Partnership Act 2004 (Consequential Amendments) (Scotland) Order 2005 (S.S.I. 2005/623), arts. 1, **13**

10 Presence of child.

Subject to section 11 of this Act, an application for a **[**F92Part I order**]** otherwise than in matrimonial **[**F93or civil partnership**]** proceedings may be entertained by—

(a) the Court of Session if, on the date of the application, the child concerned—

(i) is present in Scotland; and

(ii) is not habitually resident in any part of the United Kingdom;

(b) the sheriff if, on the date of the application,—

(i) the child is present in Scotland;

(ii) the child is not habitually resident in any part of the United Kingdom; and

(iii) either the pursuer or the defender in the application is habitually resident in the sheriffdom.

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Textual Amendments

F92 Words in s. 10 substituted (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 13 para. 62(2)(a)** (with Sch. 14 para. 1(1)); S.I. 1991/828, **art. 3(2)**

F93 Words in s. 10 inserted (5.12.2005) by The Civil Partnership Act 2004 (Consequential Amendments) (Scotland) Order 2005 (S.S.I. 2005/623), arts. 1, **13**

11 Provisions supplementary to sections 9 and 10.

(1) Subject to subsection (2) below, the jurisdiction of the court to entertain an application for a **[**F94Part I order**]** with respect to a child by virtue of section 9, 10 or 15(2) of this Act is excluded if, on the date of the application, matrimonial **[**F95or civil partnership**]** proceedings are continuing in a court in any part of the United Kingdom in respect of the marriage **[**F96or civil partnership**]** of the parents of the child.

(2) Subsection (1) above shall not apply in relation to an application for a **[**F94Part I order**]** if the court in which the matrimonial **[**F97or civil partnership**]** proceedings are continuing has made one of the following orders, that is to say—

(a) an order under section **[**F982A(4)**]**, 13(6) or **[**F9919A(4)**]** of this Act (not being an order made by virtue of section 13(6)(a)(ii)); or

(b) an order under section 5(2), 14(2) or 22(2) of this Act which is recorded as made for the purpose of enabling **[**F100Part I proceedings with respect to**]** the child concerned to be taken in Scotland or, as the case may be, in another court in Scotland,

and that order is in force.

Textual Amendments

F94 Words in s. 11(1)(2) substituted (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 13 para. 62(2)(a)** (with Sch. 14 para. 1(1)); S.I. 1991/828, **art. 3(2)**

F95 Words in s. 11(1) inserted (5.12.2005) by The Civil Partnership Act 2004 (Consequential Amendments) (Scotland) Order 2005 (S.S.I. 2005/623), arts. 1, **14(2)(a)**

F96 Words in s. 11(1) inserted (5.12.2005) by The Civil Partnership Act 2004 (Consequential Amendments) (Scotland) Order 2005 (S.S.I. 2005/623), arts. 1, **14(2)(b)**

F97 Words in s. 11(2) inserted (5.12.2005) by The Civil Partnership Act 2004 (Consequential Amendments) (Scotland) Order 2005 (S.S.I. 2005/623), arts. 1, **14(3)**

F98 Figure in s. 11(2)(a) substituted (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 13 para. 68(a)** (with Sch. 14 para. 1(1)); S.I. 1991/828, **art. 3(2)**

F99 Words in s. 11(2)(a) substituted (4.11.1996) by S.I. 1995/756, **art. 12(5)(d)**; S.R. 1996/297, **art.3**

F100 Words in s. 11(2)(b) substituted (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 13 para. 62(2)(b)** (with Sch. 14 para. 1(1)); S.I. 1991/828, **art. 3(2)**

12 Emergency jurisdiction.

Notwithstanding that any other court, whether within or outside Scotland, has jurisdiction to entertain an application for a **[**F101Part I order**]**, the Court of Session or the sheriff shall have jurisdiction to entertain such an application if—

(a) the child concerned is present in Scotland or, as the case may be, in the sheriffdom on the date of the application; and

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(b) the Court of Session or sheriff considers that, for the protection of the child, it is necessary to make such an order immediately.

Textual Amendments

F101 Words in s. 12 substituted (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 13 para. 62(2)(a)** (with Sch. 14 para.1(1)); S.I. 1991/828, **art. 3(2)**

13 Jurisdiction ancillary to matrimonial proceedings.

(1) The jurisdiction of a court in Scotland to entertain an application for a **[**F102Part I order**]** in matrimonial **[**F103or civil partnership**]** proceedings shall be modified by the following provisions of this section.

[F104(2) A court in Scotland shall not have jurisdiction–

(a) after the dismissal of matrimonial proceedings or after decree of absolvitor is granted therein; or

(b) after the dismissal of civil partnership proceedings,

to entertain an application for a Part 1 order in those proceedings unless the application therefor was made on or before such dismissal or the granting of the decree of absolvitor.**]**

(3) Where, after a decree of separation has been granted, an application is made in the separation process for a **[**F102Part I order**]**, a court in Scotland shall not have jurisdiction to entertain that application if, on the date of the application, proceedings for divorce or nullity of marriage **[**F105or proceedings for dissolution or nullity of civil partnership**]** in respect of the marriage **[**F106or civil partnership**]** concerned are continuing in another court in the United Kingdom.

(4) A court in Scotland shall not have jurisdiction to entertain an application for the variation of a **[**F102Part I order**]** made **[**F107in matrimonial **[**F108or civil partnership**]** proceedings where the court has refused to grant the principal remedy sought in the proceedings**]** if, on the date of the application, matrimonial **[**F108or civil partnership**]** proceedings in respect of the marriage **[**F109or civil partnership**]** concerned are continuing in another court in the United Kingdom.

(5) Subsections (3) and (4) above shall not apply if the court in which the other proceedings there referred to are continuing has made—

(a) an order under section **[**F1102A(4)**]** or **[**F11119A(4)**]** of this Act or under subsection (6) below (not being an order made by virtue of paragraph (a)(ii) of that subsection), or

(b) an order under section 5(2), 14(2) or 22(2) of this Act which is recorded as made for the purpose of enabling **[**F112Part I proceedings with respect to**]** the child concerned to be taken in Scotland or, as the case may be, in another court in Scotland,

and that order is in force.

(6) A court in Scotland which has jurisdiction in matrimonial **[**F113or civil partnership**]** proceedings to entertain an application for a **[**F102Part I order**]** with respect to a child may make an order declining such jurisdiction if—

(a) it appears to the court with respect to that child that—

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(i) but for section 11(1) of this Act, another court in Scotland would have jurisdiction to entertain an application for a **[**F102Part I order**]**, or

(ii) but for section 3(2), 6(3), 20(2) or 23(3) of this Act, a court in another part of the United Kingdom would have jurisdiction to make a **[**F102Part I order**]** or an order varying a **[**F102Part I order**]**; and

(b) the court considers that it would be more appropriate for **[**F114Part I matters relating to**]** that child to be determined in that other court or part.

(7) The court may recall an order made under subsection (6) above.

Textual Amendments

F102 Words in s. 13(1)-(4)(6)(a)(i)(ii) substituted (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 13 para. 62(2)(a)** (with Sch. 14 para. 1(1)); S.I. 1991/828, **art. 3(2)**

F103 Words in s. 13(1) inserted (5.12.2005) by The Civil Partnership Act 2004 (Consequential Amendments) (Scotland) Order 2005 (S.S.I. 2005/623), arts. 1, **15(2)**

F104 S. 13(2) substituted (5.12.2005) by The Civil Partnership Act 2004 (Consequential Amendments) (Scotland) Order 2005 (S.S.I. 2005/623), arts. 1, **15(3)**

F105 Words in s. 13(3) inserted (5.12.2005) by The Civil Partnership Act 2004 (Consequential Amendments) (Scotland) Order 2005 (S.S.I. 2005/623), arts. 1, **15(4)(a)**

F106 Words in s. 13(3) inserted (5.12.2005) by The Civil Partnership Act 2004 (Consequential Amendments) (Scotland) Order 2005 (S.S.I. 2005/623), arts. 1, **15(4)(b)**

F107 Words in s. 13(4) substituted (1.11.1996) by 1995 c. 36, s. 105(4), **Sch. 4 para. 41(3)(b)**; S.I. 1996/2203, art. 3(3), **Sch.**

F108 Words in s. 13(4) inserted (5.12.2005) by The Civil Partnership Act 2004 (Consequential Amendments) (Scotland) Order 2005 (S.S.I. 2005/623), arts. 1, **15(5)(a)**

F109 Words in s. 13(4) inserted (5.12.2005) by The Civil Partnership Act 2004 (Consequential Amendments) (Scotland) Order 2005 (S.S.I. 2005/623), arts. 1, **15(5)(b)**

F110 Figure in s. 13(5)(a) substituted (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 13 para. 68(b)** (with Sch. 14 para. 1(1)); S.I. 1991/828, **art. 3(2)**

F111 Words in s. 13(5)(a) substituted (4.11.1996) by S.I. 1995/756, **arts. 1(2)**, 12(5); S.R. 1996/297, **art. 3**

F112 Words in s. 13(5)(b) substituted (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 13 para. 62(2)(b)** (with Sch. 14 para. 1(1)); S.I. 1991/828, **art. 3(2)**

F113 Words in s. 13(6) inserted (5.12.2005) by The Civil Partnership Act 2004 (Consequential Amendments) (Scotland) Order 2005 (S.S.I. 2005/623), arts. 1, **15(6)**

F114 Words in s. 13(6)(b) substituted (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 13 para. 62(2)(c)** (with Sch. 14 para. 1(1)); S.I. 1991/828, **art. 3(2)**

14 Power of court to refuse application or sist proceedings.

(1) A court in Scotland which has jurisdiction to entertain an application for a **[**F115Part I order**]** may refuse the application in any case where the matter in question has already been determined in other proceedings.

(2) Where, at any stage of the proceedings on an application made to a court in Scotland for a **[**F115Part I order**]**, it appears to the court—

(a) that proceedings with respect to the matters to which the application relates are continuing outside Scotland or in another court in Scotland; F116...

(b) that it would be more appropriate for those matters to be determined in proceedings outside Scotland or in another court in Scotland and that such proceedings are likely to be taken there, F117**[**F118or**]**

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F119(c) . . . . . .

[F120(d) that it should exercise its powers under Article 8 of the Hague Convention (request to authority in another Contracting State to assume jurisdiction),**]**

the court may sist the proceedings on that application **[**F121or (as the case may be) exercise its powers under F122... **[**F123 Article 8 of the Hague Convention**]**F122...**]**.

[F124(3) The court may recall a sist granted in order for it to exercise its powers under Article 8 of the Hague Convention, and withdraw any request made by it to an authority in another Contracting State to assume jurisdiction, if—

(a) the authority in the other Contracting State does not assume jurisdiction within the period for which the court granted the sist, or

(b) the parties do not, within the period specified by the court, request the authority in the other Contracting State to assume jurisdiction.**]**

Textual Amendments

F115 Words in s. 14(1)(2) substituted (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 13 para. 62(2)(a)** (with Sch. 14 para. 1(1)); S.I. 1991/828, **art. 3(2)**

F116 Word in s. 14(2) repealed (1.3.2005) by The European Communities (Matrimonial and Parental Responsibility Jurisdiction and Judgments) (Scotland) Regulations 2005 (S.S.I. 2005/42), regs. 1(1), **4(2)(a)** (with reg. 7)

F117 Word in s. 14(2) left out (1.11.2012) by virtue of The Parental Responsibility and Measures for the Protection of Children (International Obligations) (Scotland) Regulations 2010 (S.S.I. 2010/213), reg. 1(2), **sch. para. 3(1)(b)**

F118 Word in s. 14(2)(b) inserted (31.12.2020) by The Jurisdiction and Judgments (Family, Civil Partnership and Marriage (Same Sex Couples)) (EU Exit) (Scotland) (Amendment etc.) Regulations 2019 (S.S.I. 2019/104), reg. 1, **sch. 1 para. 2(2)(a)** (with reg. 6) (as amended by S.S.I. 2020/441, regs. 1(2)(a), 16); 2020 c. 1, Sch. 5 para. 1(1)

F119 S. 14(2)(c) omitted (31.12.2020) by virtue of The Jurisdiction and Judgments (Family, Civil Partnership and Marriage (Same Sex Couples)) (EU Exit) (Scotland) (Amendment etc.) Regulations 2019 (S.S.I. 2019/104), reg. 1, **sch. 1 para. 2(2)(b)** (with reg. 6) (as amended by S.S.I. 2020/441, regs. 1(2)(a), 16); 2020 c. 1, Sch. 5 para. 1(1)

F120 S. 14(2)(d) and word inserted (1.11.2012) by The Parental Responsibility and Measures for the Protection of Children (International Obligations) (Scotland) Regulations 2010 (S.S.I. 2010/213), reg. 1(2), **sch. para. 3(1)(c)**

F121 Words in s. 14(2) added (1.3.2005) by The European Communities (Matrimonial and Parental Responsibility Jurisdiction and Judgments) (Scotland) Regulations 2005 (S.S.I. 2005/42), regs. 1(1), **4(2)(c)** (with reg. 7)

F122 Words in s. 14(2) omitted (31.12.2020) by virtue of The Jurisdiction and Judgments (Family, Civil Partnership and Marriage (Same Sex Couples)) (EU Exit) (Scotland) (Amendment etc.) Regulations 2019 (S.S.I. 2019/104), reg. 1, **sch. 1 para. 2(2)(c)** (with reg. 6) (as amended by S.S.I. 2020/441, regs. 1(2)(a), 16); 2020 c. 1, Sch. 5 para. 1(1)

F123 Words in s. 14(2)(c) inserted (1.11.2012) by The Parental Responsibility and Measures for the Protection of Children (International Obligations) (Scotland) Regulations 2010 (S.S.I. 2010/213), reg. 1(2), **sch. para. 3(1)(d)**

F124 S. 14(3) inserted (1.11.2012) by The Parental Responsibility and Measures for the Protection of Children (International Obligations) (Scotland) Regulations 2010 (S.S.I. 2010/213), reg. 1(2), **sch. para. 3(2)**

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15 Duration, variation and recall of orders.

(1) Where, after the making by a court in Scotland of a **[**F125Part I order**]** ("the existing order") with respect to a child,—

(a) a **[**F125Part I order**]**, or an order varying a **[**F125Part I order**]**, competently made by another court in any part of the United Kingdom with respect to that child; or

(b) an order **[**F126relating to the parental responsibilities or parental rights in relation to**]** that child which is made outside the United Kingdom and recognised in Scotland by virtue of section 26 of this Act F127...,

comes into force, the existing order shall cease to have effect so far as it makes provision for any matter for which the same or different provision is made by the order of the other court in the United Kingdom or, as the case may be, the order so recognised.

(2) Subject to sections 11(1) and 13(3) and (4) of this Act, a court in Scotland which has made a **[**F125Part I order**]** ("the original order") may, notwithstanding that it would no longer have jurisdiction to make the original order, make an order varying or recalling the original order; but if the original order has by virtue of subsection (1) above ceased to have effect so far as it makes provision for any matter, the court shall not have power to vary that order under this subsection so as to make provision for that matter.

(3) In subsection (2) above, an order varying an original order means any **[**F125Part I order**]** made with respect to the same child as the original order was made.

(4) **[**F128Where, by virtue of subsection (1) above, a child is to live with a different person**]**, then, if there is in force an order made by a court in Scotland F129. . . providing for the supervision of that child by a local authority, that order shall cease to have effect.

Textual Amendments

F125 Words in s. 15(1)(a)(2)(3) substituted (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 13 para. 62(2)(a)**(with Sch. 14 para. 1(1); S.I. 1991/828, **art. 3(2)**

F126 Words in s. 15(1)(b) substituted (1.11.1996) by 1995 c. 36, s. 105(1)(4), **Sch. 4 para. 41(4)(a)**; S.I. 1996/2203, art. 3(3), **Sch.**

F127 Words in s. 15(1)(b) omitted (31.12.2020) by virtue of The Jurisdiction and Judgments (Family, Civil Partnership and Marriage (Same Sex Couples)) (EU Exit) (Scotland) (Amendment etc.) Regulations 2019 (S.S.I. 2019/104), reg. 1, **sch. 1 para. 2(3)** (with reg. 6) (as amended by S.S.I. 2020/441, regs. 1(2)(a), 16); 2020 c. 1, Sch. 5 para. 1(1)

F128 Words in s. 15(4) substituted (1.11.1996) by 1995 c. 36, s. 105(1)(4), **Sch. 4 para. 41(4)(b)**; S.I. 1996/2203, art. 3(3), **Sch.**

F129 Words in s. 15(4) repealed (S.) (1.11.1996) by 1995 c. 36, s. 105(1)(5), **Sch. 5**; S.I. 1996/2203, art. 3(3), **Sch.**

16 Tutory and curatory.

(1) Subject to subsections (2) and (3) below, an application made after the commencement of this Part for an order relating to the **[**F130guardianship**]**of a **[**F130child**]** may be entertained by—

(a) the Court of Session if, on the date of the application, the pupil or minor is habitually resident in Scotland,

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(b) the sheriff if, on the date of the application, the pupil or minor is habitually resident in the sheriffdom.

(2) Subsection (1) above shall not apply to an application for the appointment or removal of a **[**F131judicial factor**]** or of a curator bonis or any application made by such factor or curator.

(3) Subsection (1) above is without prejudice to any other ground of jurisdiction on which the Court of Session or the sheriff may entertain an application mentioned therein.

(4) Provision may be made by act of sederunt prescribing, in relation to orders relating to the **[**F130guardianship**]** of a **[**F130child**]**, what constitutes an application for the purposes of this Chapter.

Textual Amendments

F130 Words in s. 16(1)(4) substituted (25. 9. 1991) by Age of Legal Capacity (Scotland) Act 1991 (c. 50, SIF 49:8), ss.10(1), 11(2), **Sch. 1 para. 45**.

F131 Words in s. 16(2) substituted (25. 9. 1991) by Age of Legal Capacity (Scotland) Act 1991 (c. 50, SIF 49:8), ss. 10(1), 11(2), **Sch. 1 para. 45**.

17 Orders for delivery of child.

(1) F132. . ., an application by one parent of a child for an order for the delivery of the child from the other parent, where the order is not sought to implement a **[**F133Part I order**]**, may be entertained by the Court of Session or a sheriff if, but only if, the Court of Session or, as the case may be, the sheriff would have jurisdiction under this Chapter to make a **[**F133Part I order**]** with respect to the child concerned.

F134(2) . . . . . .

(3) Subsection (1) above shall apply to an application by one party to a marriage for an order for the delivery of the child concerned from the other party where the child **[**F135, although not a child of both parties to the marriage, is a child of the family of those parties**]** as it applies to an application by one parent of a child for an order for the delivery of the child from the other parent.

[F136(4) In subsection (3) above, "child of the family" means any child who has been treated by both parties as a child of their family, except a child who has been placed with those parties as foster parents by a local authority or a voluntary organisation.**]**

Textual Amendments

F132 Words in s. 17(1) repealed (S.)(1.11.1996) by 1995 c. 36, s. 105(1)(5), **Sch. 5**; S.I. 1996/2203, art. 3(3), **Sch.**

F133 Words in s. 17 substituted (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 13 para. 62(2)(a)** (with Sch. 14 para. 1(1)); S.I. 1991/828, **art. 3(2)**

F134 S. 17(2) repealed (S.)(1.11.1996) by 1995 c. 36, s. 105(5), **Sch. 5**; S.I. 1996/2203, art. 3(3), **Sch.**

F135 Words in s. 17(3) substituted (1.11.1996) by 1995 c. 36, s. 105(1)(4), **Sch. 4**, para. 41(5)(a); S.I. 1996/2203, art. 3(3), **Sch.**

F136 S. 17(4) added (1.11.1996) by 1995 c. 36, s. 105(1)(4), **Sch. 4 para. 41(5)(b)**; S.I. 1996/2203, art. 3(3), **Sch.**

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[F137 17A. The provisions of this Chapter are subject to F138... **[F139**... the Hague Convention**]** .**]**

Textual Amendments

F137 S. 17A added (S.) (1.3.2005) by The European Communities (Matrimonial and Parental Responsibility Jurisdiction and Judgments) (Scotland) Regulations 2005 (S.S.I. 2005/42), regs. 1(1), **4(3)** (with reg. 7)

F138 Words in s. 17A omitted (31.12.2020) by virtue of The Jurisdiction and Judgments (Family, Civil Partnership and Marriage (Same Sex Couples)) (EU Exit) (Scotland) (Amendment etc.) Regulations 2019 (S.S.I. 2019/104), reg. 1, **sch. 1 para. 2(4)** (with reg. 6) (as amended by S.S.I. 2020/441, regs. 1(2)(a), 16); 2020 c. 1, Sch. 5 para. 1(1))

F139 Words in s. 17A inserted (1.11.2012) by The Parental Responsibility and Measures for the Protection of Children (International Obligations) (Scotland) Regulations 2010 (S.S.I. 2010/213), reg. 1(2), **sch. para. 4**

18 Interpretation of Chapter III.

(1) In this Chapter—

"child" means a person who has not attained the age of sixteen;

[F140"civil partnership proceedings" means proceedings for dissolution or nullity of a civil partnership or for the separation of the partners in a civil partnership;**]**

"matrimonial proceedings" means proceedings for divorce, nullity of marriage or judicial separation.

(2) In this Chapter, "the date of the application" means, where two or more applications are pending, the date of the first of those applications; and, for the purposes of this subsection, an application is pending until a **[**F141Part I order**]** or, in the case of an application mentioned in section 16(1) of this Act, an order relating to the **[**F142guardianship of a child**]**, has been granted in pursuance of the application or the court has refused to grant such an order.

Textual Amendments

F140 Words in s. 18(1) inserted (5.12.2005) by The Civil Partnership Act 2004 (Consequential Amendments) (Scotland) Order 2005 (S.S.I. 2005/623), arts. 1, **16**

F141 Words in s. 18 substituted (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 13 para. 62(2)(a)** (with Sch. 14 para. 1(1)); S.I. 1991/828, **art. 3(2)**

F142 Words in s. 18(2) substituted (25.9.1991) by Age of Legal Capacity (Scotland) Act 1991 (c. 50, SIF 49:8), ss. 10(1), 11(2), **Sch. 1 para. 46**.

CHAPTER IV

JURISDICTION OF COURTS IN NORTHERN IRELAND

[F143**[**F144**19 Jurisdiction: general.**

(1) A court in Northern Ireland shall not make a section 1(1)(c) order with respect to a child unless—

(a) it has jurisdiction under F145...**[**F146 the Hague Convention**]** , or

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(b) **[**F147the Hague Convention does not apply**]** but—

(i) the question of making the order arises in or in connection with matrimonial proceedings **[**F148or civil partnership proceedings**]** and the condition in section 19A of this Act is satisfied, or

(ii) the condition in section 20 of this Act is satisfied.**]**

[F149(3) A court in Northern Ireland shall not make a section 1(1)(e) order unless—

(a) it has jurisdiction under F150...**[**F151 the Hague Convention**]** , or

(b) **[**F152the Hague Convention does not apply**]** but—

(i) the condition in section 20 of this Act is satisfied, or

(ii) the child concerned is present in Northern Ireland on the relevant date and the court considers that the immediate exercise of its powers is necessary for his protection.**]]**

Textual Amendments

F143 S. 19, 19A substituted for s. 19 (N.I.) (4.11.1996) by S.I. 1995/755 (N.I. 2), art. 185(1), **Sch. 9 para. 124**; S.R. 1996/297, **art. 2**

F144 S. 19(1) substituted for s. 19(1)(2) (1.3.2005) by The European Communities (Jurisdiction and Judgments in Matrimonial and Parental Responsibility Matters) Regulations 2005 (S.I. 2005/265), regs. 1, **12(2)** (with reg. 20)

F145 Words in s. 19(1)(a) omitted (31.12.2020) by virtue of The Jurisdiction and Judgments (Family) (Amendment etc.) (EU Exit) Regulations 2019 (S.I. 2019/519), reg. 1(1), **Sch. para. 15(4)(a)** (with reg. 8) (as amended by S.I. 2020/1574, regs. 1, 5(2)); 2020 c. 1, Sch. 5 para. 1(1)

F146 Words in s. 19(1)(a) inserted (1.11.2012) by The Parental Responsibility and Measures for the Protection of Children (International Obligations) (England and Wales and Northern Ireland) Regulations 2010 (S.I. 2010/1898), reg. 1(2), **Sch. para. 7(a)**

F147 Words in s. 19(1)(b) substituted (31.12.2020) by The Jurisdiction and Judgments (Family) (Amendment etc.) (EU Exit) Regulations 2019 (S.I. 2019/519), reg. 1(1), **Sch. para. 15(4)(b)** (with reg. 8) (as amended by S.I. 2020/1574, regs. 1, 5(2)); 2020 c. 1, Sch. 5 para. 1(1)

F148 Words in s. 19(1)(b)(i) inserted (5.12.2005) by The Civil Partnership (Family Proceedings and Housing Consequential Amendments) Order 2005 (S.I. 2005/3336), arts. 1, **12** (with art. 2(4))

F149 S. 19(3) substituted (1.3.2005) by The European Communities (Jurisdiction and Judgments in Matrimonial and Parental Responsibility Matters) Regulations 2005 (S.I. 2005/265), regs. 1, **12(3)** (with reg. 20)

F150 Words in s. 19(3)(a) omitted (31.12.2020) by virtue of The Jurisdiction and Judgments (Family) (Amendment etc.) (EU Exit) Regulations 2019 (S.I. 2019/519), reg. 1(1), **Sch. para. 15(4)(a)** (with reg. 8) (as amended by S.I. 2020/1574, regs. 1, 5(2)); 2020 c. 1, Sch. 5 para. 1(1)

F151 Words in s. 19(3)(a) inserted (1.11.2012) by The Parental Responsibility and Measures for the Protection of Children (International Obligations) (England and Wales and Northern Ireland) Regulations 2010 (S.I. 2010/1898), reg. 1(2), **Sch. para. 7(c)**

F152 Words in s. 19(3)(b) substituted (31.12.2020) by The Jurisdiction and Judgments (Family) (Amendment etc.) (EU Exit) Regulations 2019 (S.I. 2019/519), reg. 1(1), **Sch. para. 15(4)(b)** (with reg. 8) (as amended by S.I. 2020/1574, regs. 1, 5(2)); 2020 c. 1, Sch. 5 para. 1(1)

F154 19A Jurisdiction in or in connection with matrimonial proceedings [F153or civil partnership proceedings] .

(1) The condition referred to in section 19(1) of this Act is that the F155... proceedings are proceedings in respect of the marriage **[**F156or civil partnership**]** of the parents of the child concerned and—

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(a) the proceedings—

(i) are proceedings for divorce or nullity of marriage **[**F157, or dissolution or annulment of a civil partnership**]**, and

(ii) are continuing;

(b) the proceedings—

(i) are proceedings for judicial separation **[**F158or legal separation of civil partners**]**,

(ii) are continuing,

and the jurisdiction of the court is not excluded by subsection (2) below; or

(c) the proceedings have been dismissed after the beginning of the trial but—

(i) the section 1(1)(c) order is being made forthwith, or

(ii) the application for the order was made on or before the dismissal.

For the purposes of subsection (1)(b) above, the jurisdiction of the court is excluded if, after the grant of a decree of judicial separation, on the relevant date, proceedings for divorce or nullity in respect of the marriage are continuing in England and Wales or Scotland.

[F159(2) For the purposes of subsection (1)(b) above, the jurisdiction of the court is excluded if—

(a) after the grant of a decree of judicial separation, on the relevant date, proceedings for divorce or nullity in respect of the marriage, or

(b) after the making of a separation order, on the relevant date, proceedings for dissolution or annulment in respect of the civil partnership,

are continuing in England and Wales or Scotland.**]**

(3) Subsection (2) above shall not apply if the court in which the other proceedings there referred to are continuing has made—

(a) an order under section 2A(4) or 13(6) of this Act (not being an order made by virtue of section 13(6)(a)(i)), or

(b) an order under section 5(2) or 14(2) of this Act which is recorded as being made for the purpose of enabling Part I proceedings to be taken in Northern Ireland with respect to the child concerned.

(4) Where a court—

(a) has jurisdiction to make a section 1(1)(c) order **[**F160by virtue of section 19(1)(b)(i) of this Act**]** , but

(b) considers that it would be more appropriate for Part I matters relating to the child to be determined outside Northern Ireland,

the court may by order direct that, while the order under this subsection is in force, no section 1(1)(c) order shall be made by any court **[**F161by virtue of section 19(1)(b)(i) of this Act**]** .

Textual Amendments

F153 Words in s. 19A heading inserted (5.12.2005) by The Civil Partnership (Family Proceedings and Housing Consequential Amendments) Order 2005 (S.I. 2005/3336), arts. 1, **13** (with art. 2(4))

F154 Ss. 19, 19A substituted for s. 19 (4.11.1996) by S.I. 1995/755 (N.I. 2), art. 185(1), **Sch. 9 para. 124**; S.R. 1996/297, **art. 2(2)**

F155 Word in s. 19A(1) omitted (5.12.2005) by virtue of The Civil Partnership (Family Proceedings and Housing Consequential Amendments) Order 2005 (S.I. 2005/3336), arts. 1, **14(2)(a)** (with art. 2(4))

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F156 Words in s. 19A(1) inserted (5.12.2005) by The Civil Partnership (Family Proceedings and Housing Consequential Amendments) Order 2005 (S.I. 2005/3336), arts. 1, **14(2)(b)** (with art. 2(4))
F157 Words in s. 19A(1)(a)(i) inserted (5.12.2005) by The Civil Partnership (Family Proceedings and Housing Consequential Amendments) Order 2005 (S.I. 2005/3336), arts. 1, **14(2)(c)** (with art. 2(4))
F158 Words in s. 19A(1)(b)(i) inserted (5.12.2005) by The Civil Partnership (Family Proceedings and Housing Consequential Amendments) Order 2005 (S.I. 2005/3336), arts. 1, **14(2)(d)** (with art. 2(4))
F159 S. 19A(2) substituted (5.12.2005) by The Civil Partnership (Family Proceedings and Housing Consequential Amendments) Order 2005 (S.I. 2005/3336), arts. 1, **14(3)** (with art. 2(4))
F160 Words in s. 19A(4) substituted (1.3.2005) by The European Communities (Jurisdiction and Judgments in Matrimonial and Parental Responsibility Matters) Regulations 2005 (S.I. 2005/265), regs. 1, **13(a)** (with reg. 20)
F161 Words in s. 19A(4) substituted (1.3.2005) by The European Communities (Jurisdiction and Judgments in Matrimonial and Parental Responsibility Matters) Regulations 2005 (S.I. 2005/265), regs. 1, **13(b)** (with reg. 20)

20 Habitual residence or presence of child.

(1) The condition referred to in **[**F162section 19(1)(b)(ii)**]** of this Act is that on the relevant date the child concerned—

(a) is habitually resident in Northern Ireland, or

(b) is present in Northern Ireland and is not habitually resident in any part of the United Kingdom,

and, in either case, the jurisdiction of the court is not excluded by subsection (2) below.

(2) For the purposes of subsection (1) above. the jurisdiction or the court is excluded if, on the relevant date, **[**F163matrimonial proceedings**][**F164or civil partnership proceedings**]** are continuing in a court in England and Wales or Scotland in respect of the marriage **[**F165or civil partnership**]** of the parents of the child concerned.

(3) Subsection (2) above shall not apply if the court in which the other proceedings there referred to are continuing has made—

(a) an order under section **[**F1662A(4)**]** or 13(6) of this Act (not being an order made by virtue of section 13(6)(a)(i)), or

(b) an order under section 5(2) or 14(2) of this Act which is recorded as made for the purpose of enabling **[**F167Part I proceedings with respect to**]** the child concerned to be taken in Northern Ireland,

and that order is in force.

F168(4) . . . . . .

F168(5) . . . . . .

F168(6) . . . . . .

Textual Amendments

F162 Words in s. 20(1) substituted (1.3.2005) by The European Communities (Jurisdiction and Judgments in Matrimonial and Parental Responsibility Matters) Regulations 2005 (S.I. 2005/265), regs. 1, **14** (with reg. 20)
F163 Words in s. 20(2) substituted (4.11.1996) by S.I. 1995/755 (N.I. 2), art. 185(1), **Sch. 9 para. 125(b)**; S.R. 1996/297, **art. 2(2)**

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F164 Words in s. 20(2) inserted (5.12.2005) by The Civil Partnership (Family Proceedings and Housing Consequential Amendments) Order 2005 (S.I. 2005/3336), arts. 1, **15(a)** (with art. 2(4))
F165 Words in s. 20(2) inserted (5.12.2005) by The Civil Partnership (Family Proceedings and Housing Consequential Amendments) Order 2005 (S.I. 2005/3336), arts. 1, **15(b)** (with art. 2(4))
F166 Figure in s. 20(3)(a) substituted (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 13 para. 68(c)** (with Sch. 14 para. 1(1)); S.I. 1991/828, **art. 3(2)**
F167 Words in s. 20(3)(b) substituted (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 13 para. 62(2)(b)** (with Sch. 14 para. 1(1)); S.I. 1991/828, **art. 3(2)**
F168 S. 20(4)-(6) repealed (4.11.1996) by S.I. 1995/755 (N.I. 2), art. 185(2), **Sch. 10**; S.R. 1996/297, **art. 2(2)**

F169 21 . . . . . .

Textual Amendments
F169 S. 21 repealed (4.11.1996) by S.I. 1995/755 (N.I. 2), art. 185(2), **Sch. 10**; S.R. 1996/297, **art. 2(2)**

22 Power of court to refuse application or stay proceedings.

(1) A court in Northern Ireland which has jurisdiction to make a **[**F170Part I order**]** may refuse an application for the order in any case where the matter in question has already been determined in proceedings outside Northern Ireland.

(2) Where, at any stage of the proceedings on an application made to a court in Northern Ireland for a **[**F170Part I order**]**, or for the variation of a **[**F170Part I order**]**, F171..., it appears to the court—

(a) that proceedings with respect to the matters to which the application relates are continuing outside Northern Ireland, F172...

(b) that it would be more appropriate for those matters to be determined in proceedings to be taken outside Northern Ireland, F173**[**F174or**]**

F175(c) . . . . . .

[F176(d) that it should exercise its powers under Article 8 of the Hague Convention (request to authority in another Contracting State to assume jurisdiction),**]**

the court may stay the proceedings on the application **[**F177or (as the case may be) exercise its powers under F178... **[**F179 Article 8 of the Hague Convention**]**.

(3) The court may remove a stay granted **[**F180by virtue of subsection (2)(a) or (b) above**]** if it appears to the court that there has been unreasonable delay in the taking or prosecution of the other proceedings referred to in that subsection, or that those proceedings are stayed, sisted or concluded.

F181(3A) . . . . . .

[F182(3B) The court may remove a stay granted in order for it to exercise its powers under Article 8 of the Hague Convention, and withdraw any request made by it to an authority in another Contracting State to assume jurisdiction, if—

(a) the authority in the other Contracting State does not assume jurisdiction within the period for which the court granted the stay, or

(b) the parties do not, within the period specified by the court, request the authority in the other Contracting State to assume jurisdiction.**]**

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(4) Nothing in this section **[**[F183]so far as it relates to proceedings not governed by the **[**[F184]Hague Convention**]]** shall affect any power exercisable apart from this section to refuse an application or to grant or remove a stay.**]**

Textual Amendments

F170 Words in s. 22 substituted (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 13 para. 62(2)(a)** (with Sch. 14 para. 1(1)); S.I. 1991/828, **art. 3(2)**

F171 Words in s. 22(2) omitted (1.3.2005) by virtue of The European Communities (Jurisdiction and Judgments in Matrimonial and Parental Responsibility Matters) Regulations 2005 (S.I. 2005/265), regs. 1, **15(2)** (with reg. 20)

F172 Word in s. 22(2)(a) left out (1.11.2012) by virtue of The Parental Responsibility and Measures for the Protection of Children (International Obligations) (England and Wales and Northern Ireland) Regulations 2010 (S.I. 2010/1898), reg. 1(2), **Sch. para. 8(1)(a)**

F173 Word in s. 22(2)(b) left out (1.11.2012) by virtue of The Parental Responsibility and Measures for the Protection of Children (International Obligations) (England and Wales and Northern Ireland) Regulations 2010 (S.I. 2010/1898), reg. 1(2), **Sch. para. 8(1)(b)**

F174 Word in s. 22(2)(b) inserted (31.12.2020) by The Jurisdiction and Judgments (Family) (Amendment etc.) (EU Exit) Regulations 2019 (S.I. 2019/519), reg. 1(1), **Sch. para. 15(5)(a)(i)** (with reg. 8) (as amended by S.I. 2020/1574, regs. 1, 5(2)); 2020 c. 1, Sch. 5 para. 1(1)

F175 S. 22(2)(c) omitted (31.12.2020) by virtue of The Jurisdiction and Judgments (Family) (Amendment etc.) (EU Exit) Regulations 2019 (S.I. 2019/519), reg. 1(1), **Sch. para. 15(5)(a)(ii)** (with reg. 8) (as amended by S.I. 2020/1574, regs. 1, 5(2)); 2020 c. 1, Sch. 5 para. 1(1)

F176 S. 22(2)(d) and word inserted (1.11.2012) by The Parental Responsibility and Measures for the Protection of Children (International Obligations) (England and Wales and Northern Ireland) Regulations 2010 (S.I. 2010/1898), reg. 1(2), **Sch. para. 8(1)(c)**

F177 Words in s. 22(2) inserted (1.3.2005) by The European Communities (Jurisdiction and Judgments in Matrimonial and Parental Responsibility Matters) Regulations 2005 (S.I. 2005/265), regs. 1, **15(4)** (with reg. 20)

F178 Words in s. 22(2) omitted (31.12.2020) by virtue of The Jurisdiction and Judgments (Family) (Amendment etc.) (EU Exit) Regulations 2019 (S.I. 2019/519), reg. 1(1), **Sch. para. 15(5)(a)(iii)** (with reg. 8) (as amended by S.I. 2020/1574, regs. 1, 5(2)); 2020 c. 1, Sch. 5 para. 1(1)

F179 Words in s. 22(2) inserted (1.11.2012) by The Parental Responsibility and Measures for the Protection of Children (International Obligations) (England and Wales and Northern Ireland) Regulations 2010 (S.I. 2010/1898), reg. 1(2), **Sch. para. 8(1)(d)**

F180 Words in s. 22(3) substituted (1.3.2005) by The European Communities (Jurisdiction and Judgments in Matrimonial and Parental Responsibility Matters) Regulations 2005 (S.I. 2005/265), regs. 1, **15(5)** (with reg. 20)

F181 S. 22(3A) omitted (31.12.2020) by virtue of The Jurisdiction and Judgments (Family) (Amendment etc.) (EU Exit) Regulations 2019 (S.I. 2019/519), reg. 1(1), **Sch. para. 15(5)(b)** (with reg. 8) (as amended by S.I. 2020/1574, regs. 1, 5(2)); 2020 c. 1, Sch. 5 para. 1(1)

F182 S. 22(3B) inserted (1.11.2012) by The Parental Responsibility and Measures for the Protection of Children (International Obligations) (England and Wales and Northern Ireland) Regulations 2010 (S.I. 2010/1898), reg. 1(2), **Sch. para. 8(2)**

F183 Words in s. 22(4) inserted (1.3.2005) by The European Communities (Jurisdiction and Judgments in Matrimonial and Parental Responsibility Matters) Regulations 2005 (S.I. 2005/265), regs. 1, **15(7)** (with reg. 20)

F184 Words in s. 22(4) substituted (31.12.2020) by S.I. 2019/519, Sch. para. 15(5)(c) (as amended by The Jurisdiction, Judgments and Applicable Law (Amendment) (EU Exit) Regulations 2020 (S.I. 2020/1574), regs. 1, **5(3)(f)(ii)**)

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23 Duration and variation of custody orders.

(1) If a **[**F185Part I order**]** made by a court in England and Wales or Scotland (or a variation of such an order) comes into force with respect to a child at a time when a **[**F185Part I order**]** made by a court in Northern Ireland has effect with respect to him, the latter order shall cease to have effect so far as it makes provision for any matter for which the same or different provision is made by (or by the variation of) the order made by the court in England and Wales or Scotland.

(2) Where by virtue of subsection (1) above a **[**F185Part I order**]** has ceased to have effect so far as it makes provision for any matter, a court in Northern Ireland shall not have jurisdiction to vary that order so as to make provision for that matter.

[F186(3) A court in Northern Ireland shall not have jurisdiction to vary a Part I order if, on the relevant date, matrimonial proceedings **[**F187or civil partnership proceedings**]** are continuing in England and Wales or Scotland in respect of the marriage **[**F188or civil partnership**]** of the parents of the child concerned.

[F189(3A) Subsection (3) shall not apply if—

(a) the Part 1 order was made in or in connection with proceedings—

(i) for divorce or nullity in Northern Ireland in respect of the marriage of the parents of the child concerned; or

(ii) for dissolution or annulment in Northern Ireland in respect of the civil partnership of the parents of the child concerned; and

(b) those proceedings are continuing.**]**

[F189(3B) Subsection (3) shall not apply if—

(a) the Part 1 order was made in or in connection with proceedings—

(i) for judicial separation in Northern Ireland; or

(ii) for a separation order in Northern Ireland; and

(b) those proceedings are continuing; and

(c) as the case may be, the decree of judicial separation has not yet been granted or the separation order has not yet been made.**]]**

(4) Subsection (3) above shall not apply if the court in which the proceedings there referred to are continuing has made—

(a) an order under section **[**F1902A(4)**]** or 13(6) of this Act (not being an order made by virtue of section 13(6)(a)(i)), or

(b) an order under section 5(2) or 14(2) of this Act which is recorded as made for the purpose of enabling **[**F191Part I proceedings with respect to**]** the child concerned to be taken in Northern Ireland,

and that order is in force.

(5) Subsection (3) above shall not apply in the case of a **[**F192variation of a section 1(1)(e) order if the child concerned**]** is present in Northern Ireland on the relevant date and the court considers that the immediate exercise of its powers is necessary for his protection.

[F193(6) Subsection (7) below applies where a Part I order which is—

(a) a residence order (within the meaning of the Children (Northern Ireland) Order 1995) in favour of a person with respect to a child,

(b) an order made in the exercise of the High Court's inherent jurisdiction with respect to children by virtue of which a person has care of a child, or

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(c) an order—

(i) of a kind mentioned in section 1(3)(a) of this Act,

(ii) under which a person is entitled to the actual possession of a child,

ceases to have effect in relation to that person by virtue of subsection (1) above.

(7) Where this subsection applies, any family assistance order made under Article 16 of the Children (Northern Ireland) Order 1995 with respect to the child shall also cease to have effect.

(8) For the purposes of subsection (7) above the reference to a family assistance order under Article 16 of the Children (Northern Ireland) Order 1995 shall be deemed to include a reference to an order for the supervision of a child made under—

(a) Article 47 of the Matrimonial Causes (Northern Ireland) Order 1978, or

(b) Article 11 of the Domestic Proceedings (Northern Ireland) Order 1980;

but this subsection shall cease to have effect once all such orders for the supervision of children have ceased to have effect in accordance with Schedule 8 to the Children (Northern Ireland) Order 1995.**]**

Textual Amendments

F185 Words in s. 23(1)-(3)(5)-(6) substituted (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 13 para. 62(2)(a)** (with Sch. 14 para. 1(1)); S.I. 1991/828, **art. 3(2)**

F186 S. 23(3)(3A)(3B) substituted for s. 23(3) (4.11.1996) by S.I. 1995/755 (N.I. 2), art. 185(1), **Sch. 9 para. 126(2)**; S.R. 1996/297, **art. 2(2)**

F187 Words in s. 23(3) inserted (5.12.2005) by The Civil Partnership (Family Proceedings and Housing Consequential Amendments) Order 2005 (S.I. 2005/3336), arts. 1, **16(2)(a)** (with art. 2(4))

F188 Words in s. 23(3) inserted (5.12.2005) by The Civil Partnership (Family Proceedings and Housing Consequential Amendments) Order 2005 (S.I. 2005/3336), arts. 1, **16(2)(b)** (with art. 2(4))

F189 S. 23(3A)(3B) substituted (5.12.2005) by The Civil Partnership (Family Proceedings and Housing Consequential Amendments) Order 2005 (S.I. 2005/3336), arts. 1, **16(3)** (with art. 2(4))

F190 Figure in s. 23(4)(a) substituted (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 13 para. 68(e)** (with Sch. 14 para. 1(1)); S.I. 1991/828, **art. 3(2)**

F191 Words in s. 23(4)(b) substituted (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 13 para. 62(2)(b)** (with Sch. 14 para. 1(1)); S.I. 1991/828, **art. 3(2)**

F192 Words in s. 23(5) substituted (4.11.1996) by S.I. 1995/755 (N.I. 2), art. 185(1), **Sch. 9 para. 126(3)**; S.R. 1996/297, **art. 2(2)**

F193 S. 23(6)-(8) substituted for s. 23(6)(7) (4.11.1996) by S.I. 1995/755 (N.I. 2), art. 185(1), **Sch. 9 para. 126(4)**; S.R. 1996/297, **art. 2(2)**

[F194 24 Interpretation of Chapter IV.

In this Chapter—

(a) "child" means a person who has not attained the age of eighteen;

[F195(aa) "civil partnership proceedings" means proceedings for the dissolution or annulment of a civil partnership or for legal separation of the civil partners;**]**

(b) "matrimonial proceedings" means proceedings for divorce, nullity of marriage or judicial separation;

(c) "the relevant date" means, in relation to the making or variation of an order—

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(i) where an application is made for an order to be made or varied, the date of the application (or first application, if two or more are determined together), and

(ii) where no such application is made, the date on which the court is considering whether to make or, as the case may be, vary the order; and

(d) "section 1(1)(c) order" and "section 1(1)(e) order" mean orders falling within section 1(1)(c) and (e) of this Act respectively.**]**

Textual Amendments

F194 S. 24 substituted (4.11.1996) by S.I. 1995/755 (N.I. 2), art. 185(1), **Sch. 9 para. 127**; S.R. 1996/297, **art. 2(2)**

F195 S. 24(aa) inserted (5.12.2005) by The Civil Partnership (Family Proceedings and Housing Consequential Amendments) Order 2005 (S.I. 2005/3336), arts. 1, **17** (with art. 2(4))

CHAPTER V

RECOGNITION AND ENFORCEMENT

25 Recognition of custody orders: general.

(1) Where a **[**F196Part I order**]** made by a court in any part of the United Kingdom is in force with respect to a child who has not attained the age of sixteen, then, subject to subsection (2) below, the order shall be recognised in any other part of the United Kingdom as having the same effect in that other part as if it had been made by the appropriate court in that other part and as if that court had had jurisdiction to make it.

(2) Where a **[**F196Part I order**]** includes provision as to the means by which rights conferred by the order are to be enforced, subsection (1) above shall not apply to that provision.

(3) A court in a part of the United Kingdom in which a **[**F196Part I order**]** is recognised in accordance with subsection (1) above shall not enforce the order unless it has been registered in that part of the United Kingdom under section 27 of this Act and proceedings for enforcement are taken in accordance with section 29 of this Act.

Textual Amendments

F196 Words in s. 25(1)-(3) substituted (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 13 para. 62(2)(a)** (with Sch. 14 para. 1(1)); S.I. 1991/828, **art. 3(2)**

[F197**26 Recognition: special Scottish rule.**

F198(1) An order relating to parental responsibilities or parental rights in relation to a child which is made outside the United Kingdom shall be recognised in Scotland if the order was made in the country where the child was habitually resident.**]**

F199(2) . . . . . .

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Textual Amendments

F197 S. 26 substituted (1.11.1996) by 1995 c. 36, s. 105(4), **Sch. 4 para. 41(6)**; S.I. 1996/2203, art. 3(3), **Sch.**

F198 S. 26(1) renumbered (1.3.2001) by virtue of S.S.I. 2001/36, **reg. 4(3)(a)**

F199 S. 26(2) omitted (31.12.2020) by virtue of The Jurisdiction and Judgments (Family, Civil Partnership and Marriage (Same Sex Couples)) (EU Exit) (Scotland) (Amendment etc.) Regulations 2019 (S.S.I. 2019/104), reg. 1, **sch. 1 para. 2(5)** (with reg. 6) (as amended by S.S.I. 2020/441, regs. 1(2)(a), 16); 2020 c. 1, Sch. 5 para. 1(1)

27 Registration.

(1) Any person on whom any rights are conferred by a **[**F200Part I order**]** may apply to the court which made it for the order to be registered in another part of the United Kingdom under this section.

(2) An application under this section shall be made in the prescribed manner and shall contain the prescribed information and be accompanied by such documents as may be prescribed.

(3) On receiving an application under this section the court which made the **[**F200Part I order**]** shall, unless it appears to the court that the order is no longer in force, cause the following documents to be sent to the appropriate court in the part of the United Kingdom specified in the application, namely—

(a) a certified copy of the order, and

(b) where the order has been varied, prescribed particulars of any variation which is in force, and

(c) a copy of the application and of any accompanying documents.

(4) Where the prescribed officer of the appropriate court receives a certified copy of a **[**F200Part I order**]** under subsection (3) above, he shall forthwith cause the order, together with particulars of any variation, to be registered in that court in the prescribed manner.

(5) An order shall not be registered under this section in respect of a child who has attained the age of sixteen, and the registration of an order in respect of a child who has not attained the age of sixteen shall cease to have effect on the attainment by the child of that age.

Textual Amendments

F200 Words in S. 27(1)(3)(4) substituted (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 13 para. 62(2)(a)** (with Sch. 14 para. 1(1)); S.I. 1991/828, **art. 3(2)**

28 Cancellation and variation of registration.

(1) A court which revokes, recalls or varies an order registered under section 27 of this Act shall cause notice of the revocation, recall or variation to be given in the prescribed manner to the prescribed officer of the court in which it is registered and, on receiving the notice, the prescribed officer—

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(a) in the case of the revocation or recall of the order, shall cancel the registration, and

(b) in the case of the variation of the order, shall cause particulars of the variation to be registered in the prescribed manner.

(2) Where—

(a) an order registered under section 27 of this Act ceases (in whole or in part) to have effect in the part of the United Kingdom in which it was made, otherwise than because of its revocation, recall or variation, or

(b) an order registered under section 27 of this Act in Scotland ceases (in whole or in part) to have effect there as a result of the making of an order in proceedings outside the United Kingdom,

the court in which the order is registered may, of its own motion or on the application of any person who appears to the court to have an interest in the matter, cancel the registration (or, if the order has ceased to have effect in part, cancel the registration so far as it relates to the provisions which have ceased to have effect).

29 Enforcement.

(1) Where a **[**F201Part I order**]** has been registered under section 27 of this Act, the court in which it is registered shall have the same powers for the purpose of enforcing the order **[**F202(including, where an order with respect to contact is registered in England and Wales, the powers under section 11O of the Children Act 1989)**]** as it would have if it had itself made the order and had jurisdiction to make it; and proceedings for or with respect to enforcement may be taken accordingly.

(2) Where an application has been made to any court for the enforcement of an order registered in that court under section 27 of this Act, the court may, at any time before the application is determined, give such interim directions as it thinks fit for the purpose of securing the welfare of the child concerned or of preventing changes in the circumstances relevant to the determination of the application.

(3) The references in subsection (1) above to a **[**F201Part I order**]** do not include references to any provision of the order as to the means by which rights conferred by the order are to be enforced.

Textual Amendments

F201 Words in s.29(1)(3) substituted (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 13 para. 62(2)(a)** (with Sch. 14 para. 1(1)); S.I. 1991/828, **art. 3(2)**

F202 Words in s. 29(1) inserted (8.12.2008) by Children and Adoption Act 2006 (c. 20), s. 17(2), **Sch. 2 para. 4**; S.I. 2008/2870, art. 2(2)(e)

30 Staying or sisting of enforcement proceedings.

(1) Where in accordance with section 29 of this Act proceedings are taken in any court for the enforcement of an order registered in that court, any person who appears to the court to have an interest in the matter may apply for the proceedings to be stayed or sisted on the ground that he has taken or intends to take other proceedings (in the United Kingdom or elsewhere) as a result of which the order may cease to have effect, or may have a different effect, in the part of the United Kingdom in which it is registered.

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[F203(1A) No application may be made under subsection (1) for proceedings to be stayed or sisted if the proceedings are proceedings on an application for an order under section 11O(2) of the Children Act 1989.**]**

(2) If after considering an application under subsection (1) above the court considers that the proceedings for enforcement should be stayed or sisted in order that other proceedings may be taken or concluded, it shall stay or sist the proceedings for enforcement accordingly.

(3) The court may remove a stay or recall a sist granted in accordance with subsection (2) above if it appears to the court—

(a) that there has been unreasonable delay in the taking or prosecution of the other proceedings referred to in that subsection, or

(b) that those other proceedings are concluded and that the registered order, or a relevant part of it, is still in force.

(4) Nothing in this section shall affect any power exercisable apart from this section to grant, remove or recall a stay or sist.

Textual Amendments

F203 S. 30(1A) inserted (8.12.2008) by Children and Adoption Act 2006 (c. 20), s. 17(2), **Sch. 2 para. 5**; S.I. 2008/2870, art. 2(2)(e)

31 Dismissal of enforcement proceedings.

(1) Where in accordance with section 29 of this Act proceedings are taken in any court for the enforcement of an order registered in that court, any person who appears to the court to have an interest in the matter may apply for those proceedings to be dismissed on the ground that the order has (in whole or in part) ceased to have effect in the part of the United Kingdom in which it was made.

[F204(1A) No application may be made under subsection (1) for proceedings to be dismissed if the proceedings are proceedings on an application for an order under section 11O(2) of the Children Act 1989.**]**

(2) Where in accordance with section 29 of this Act proceedings are taken in the Court of Session for the enforcement of an order registered in that court, any person who appears to the court to have an interest in the matter may apply for those proceedings to be dismissed on the ground that the order has (in whole or in part) ceased to have effect in Scotland as a result of the making of an order in proceedings outside the United Kingdom.

(3) If, after considering an application under subsection (1) or (2) above, the court is satisfied that the registered order has ceased to have effect, it shall dismiss the proceedings for enforcement (or, if it is satisfied that the order has ceased to have effect in part, it shall dismiss the proceedings so far as they relate to the enforcement of provisions which have ceased to have effect).

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Textual Amendments

F204 S. 31(1A) inserted (8.12.2008) by Children and Adoption Act 2006 (c. 20), s. 17(2), **Sch. 2 para. 6**; S.I. 2008/2870, art. 2(2)(e)

32 Interpretation of Chapter V.

(1) In this Chapter—

"the appropriate court", in relation to England and Wales or Northern Ireland, means the High Court and, in relation to Scotland, means the Court of Session;

"**[**F205Part I order**]**" includes (except where the context otherwise requires) any order within section 1(3) of this Act which, on the assumptions mentioned in subsection (3) below—

(a) could have been made notwithstanding the provisions of this Part;

(b) would have been a **[**F205Part I order**]** for the purposes of this Part; and

(c) would not have ceased to have effect by virtue of section 6, 15 or 23 of this Act.

(2) In the application of this Chapter to Scotland, "**[**F205Part I order**]**" also includes (except where the context otherwise requires) any order within section 1(3) of this Act which, on the assumptions mentioned in subsection (3) below—

(a) would have been a **[**F205Part I order**]** for the purposes of this Part; and

(b) would not have ceased to have effect by virtue of section 6 or 23 of this Act,

and which, but for the provisions of this Part, would be recognised in Scotland under any rule of law.

(3) The said assumptions are—

(a) that this Part had been in force at all material times; and

(b) that any reference in section 1 of this Act to any enactment included a reference to any corresponding enactment previously in force.

Textual Amendments

F205 Words s. 32(1)(b)(2)(a) substituted (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 13 para. 62(2)(a)** (with Sch. 14 para. 1(1)); S.I. 1991/828, **art. 3(2)**

CHAPTER VI

MISCELLANEOUS AND SUPPLEMENTAL

33 Power to order disclosure of child's whereabouts.

(1) Where in proceedings for or relating to a **[**F206Part I order**]** in respect of a child there is not available to the court adequate information as to where the child is, the court may order any person who it has reason to believe may have relevant information to disclose it to the court.

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(2) A person shall not be excused from complying with an order under subsection (1) above by reason that to do so may incriminate him or his spouse **[**F207or civil partner**]** of an offence; but a statement or admission made in compliance with such an order shall not be admissible in evidence against either of them in proceedings for any offence other than perjury.

(3) A court in Scotland before which proceedings are pending for the enforcement of an order **[**F208relating to parental responsibilities or parental rights in relation to**]** a child made outside the United Kingdom which is recognised in Scotland shall have the same powers as it would have under subsection (1) above if the order were its own.

Textual Amendments

F206 Words in s. 33(1) substituted (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 13 para. 62(2)(a)** (with Sch. 14 para. 1(1)); S.I. 1991/828, **art. 3(2)**

F207 Words in s. 33(2) inserted (5.12.2005) by Civil Partnership Act 2004 (c. 33), s. 263(10)(b), **Sch. 27 para. 124**; S.I. 2005/3175, art. 2(2)

F208 Words in s. 33(3) substituted (1.11.1996) by 1995 c. 36, s. 105(1)(4), **Sch. 4 para. 41(7)**; S.I. 1996/2203, art. 3(3), **Sch.**

34 Power to order recovery of child.

(1) Where—

(a) a person is required by a **[**F209Part I order**]**, or an order for the enforcement of a **[**F209Part I order**]**, to give up a child to another person ("the person concerned"), and

(b) the court which made the order imposing the requirement is satisfied that the child has not been given up in accordance with the order,

the court may make an order authorising an officer of the court or a constable to take charge of the child and deliver him to the person concerned.

(2) The authority conferred by subsection (1) above includes authority—

(a) to enter and search any premises where the person acting in pursuance of the order has reason to believe the child may be found, and

(b) to use such force as may be necessary to give effect to the purpose of the order.

(3) Where by virtue of—

[F210(a) section 14 of the Children Act 1989**]**

[F211(b) Article 14 (enforcement of residence orders) of the Children (Northern Ireland) Order 1995,**]**

a **[**F209Part I order**]** (or a provision of a **[**F209Part I order**]**) may be enforced as if it were an order requiring a person to give up a child to another person, subsection (1) above shall apply as if the **[**F209Part I order**]** had included such a requirement.

(4) This section is without prejudice to any power conferred on a court by or under any other enactment or rule of law.

Textual Amendments

F209 Words in s. 34(1)(a)(3) substituted (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 13 para. 62(2)(a)** (with Sch. 14 para. 1(1)); S.I. 1991/828, **art. 3(2)**

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F210 S. 34(3)(a) substituted (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 13 para. 70** (with Sch. 14 para. 1(1)); S.I. 1991/828, **art. 3(2)**

F211 S. 34(3)(b) substituted (4.11.1996) by S.I. 1995/756, **art. 12(3)**; S.R. 1996/297, **para. 3**

35 Powers to restrict removal of child from jurisdiction.

F212(1) . . . . . .

F213(2) . . . . . .

(3) A court in Scotland—

(a) at any time after the commencement of proceedings in connection with which the court would have jurisdiction to make a **[**F214Part I order**]**, or

(b) in any proceedings in which it would be competent for the court to grant an interdict prohibiting the removal of a child from its jurisdiction,

may, on an application by any of the persons mentioned in subsection (4) below, grant interdict or interim interdict prohibiting the removal of the child from the United Kingdom or any part of the United Kingdom, or out of the control of the person in **[**F215whose care**]** the child is.

(4) The said persons are—

(a) any party to the proceedings,

(b) the **[**F216guardian**]** of the child concerned, and

(c) any other person who has or wishes to obtain the F217. . . care of the child.

(5) In subsection (3) above "the court" means the Court of Session or the sheriff; and for the purposes of subsection (3)(a) above, proceedings shall be held to commence—

(a) in the Court of Session, when a summons is signeted or a petition is presented;

(b) in the sheriff court, when the warrant of citation is signed.

Textual Amendments

F212 S. 35(1) repealed (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 15** (with Sch. 14 para. 1(1), 27(4)); S.I. 1991/828, **art. 3(2)**

F213 S. 35(2) repealed (4.11.1996) by S.I. 1995/755 (N.I. 2), art. 185(2), **Sch. 10**; S.R. 1996/297, **art. 2(2)**

F214 Words in s. 35(3) substituted (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 13 para. 62(2)(a)** (with Sch. 14 para. 1(1)); S.I. 1991/828, **art. 3(2)**

F215 Words in s. 35(3) substituted (1.11.1996) by 1995 c. 36, s. 105(1)(4), **Sch. 4 para. 41(8)**; S.I. 1996/2203, art. 3(3), **Sch.**

F216 Words in s. 35(4)(b) substituted (S.) (25. 9. 1991) by Age of Legal Capacity (Scotland) Act 1991 (c. 50, SIF 49:8), ss. 10(1), 11(2), **Sch. 1 para. 47**.

F217 Words in s. 35(4)(c) repealed (1.11.1996) by 1995 c. 36, s. 105(1)(5), **Sch. 5**; S.I. 1996/2203, art. 3(3), **Sch.**

36 Effect of orders restricting removal.

(1) This section applies to any order made by a court in the United Kingdom prohibiting the removal of a child from the United Kingdom or from any specified part of it.

(2) An order to which this section applies shall have effect in each part of the United Kingdom other than the part in which it was made—

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(a) as if it had been made by the appropriate court in that other part, and

(b) in the case of an order which has the effect of prohibiting the child's removal to that other part, as if it had included a prohibition on his further removal to any place except one to which he could be removed consistently with the order.

(3) The references in subsections (1) and (2) above to prohibitions on a child's removal include references to prohibitions subject to exceptions; and in a case where removal is prohibited except with the consent of the court, nothing in subsection (2) above shall be construed as affecting the identity of the court whose consent is required.

(4) In this section "child" means a person who has not attained the age of sixteen; and this section shall cease to apply to an order relating to a child when he attains the age of sixteen.

37 Surrender of passports.

(1) Where there is in force an order prohibiting or otherwise restricting the removal of a child from the United Kingdom or from any specified part of it, the court by which the order was in fact made, or by which it is treated under section 36 of this Act as having been made, may require any person to surrender any United Kingdom passport which has been issued to, or contains particulars of, the child.

(2) In this section "United Kingdom passport" means a current passport issued by the Government of the United Kingdom.

38 Automatic restriction on removal of wards of court.

(1) The rule of law which (without any order of the court) restricts the removal of a ward of court from the jurisdiction of the court shall, in a case to which this section applies, have effect subject to the modifications in subsection (3) below.

(2) This section applies in relation to a ward of court if—

(a) proceedings for divorce, nullity or judicial separation in respect of the marriage of his parents are continuing in a court in another part of the United Kingdom (that is to say, in a part of the United Kingdom outside the jurisdiction of the court of which he is a ward), or

[[F218](aa) proceedings for dissolution or annulment or legal separation in respect of the civil partnership of his parents are continuing in a court in another part of the United Kingdom (that is to say, in a part of the United Kingdom outside the jurisdiction of the court of which he is a ward), or**]**

(b) he is habitually resident in another part of the United Kingdom,

except where that other part is Scotland and he has attained the age of sixteen.

(3) Where this section applies, the rule referred to in subsection (1) above shall not prevent—

(a) the removal of the ward of court, without the consent of any court, to the other part of the United Kingdom mentioned in subsection (2) above, or

(b) his removal to any other place with the consent of either the appropriate court in that other part of the United Kingdom or the court mentioned in subsection **[**[F219](2)(a) or (aa) above**]** .

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Textual Amendments

F218 S. 38(2)(aa) inserted (5.12.2005) by The Civil Partnership (Family Proceedings and Housing Consequential Amendments) Order 2005 (S.I. 2005/3336), arts. 1, **18(1)** (with art. 2(4))

F219 Words in s. 38(3)(b) substituted (5.12.2005) by The Civil Partnership (Family Proceedings and Housing Consequential Amendments) Order 2005 (S.I. 2005/3336), arts. 1, **18(2)** (with art. 2(4))

39 Duty to furnish particulars of other proceedings.

Parties to proceedings for or relating to a **[**F220Part I order**]** shall, to such extent and in such manner as may be prescribed, give particulars of other proceedings known to them which relate to the child concerned (including proceedings instituted abroad and proceedings which are no longer continuing).

Textual Amendments

F220 Words in s. 39 substituted (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 13 para. 62(2)(a)** (with Sch. 14 para. 1(1)); S.I. 1991/828, **art. 3(2)**

40 Interpretation of Chapter VI.

(1) In this Chapter—

"the appropriate court" has the same meaning as in Chapter V;

"**[**F221Part I order**]**" includes (except where the context otherwise requires) any such order as is mentioned in section 32(1) of this Act.

(2) In the application of this Chapter to Scotland, "**[**F221Part I order**]**" also includes (except where the context otherwise requires) any such order as is mentioned in section 32(2) of this Act.

Textual Amendments

F221 Words in s. 40(1)(2) substituted (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 13 para. 62(2)(a)** (with Sch. 14 para. 1(1)); S.I. 1991/828, **art. 3(2)**

41 Habitual residence after removal without consent, etc.

(1) Where a child who—

(a) has not attained the age of sixteen, and

(b) is habitually resident in a part of the United Kingdom,

becomes habitually resident outside that part of the United Kingdom in consequence of circumstances of the kind specified in subsection (2) below, he shall be treated for the purposes of this Part as continuing to be habitually resident in that part of the United Kingdom for the period of one year beginning with the date on which those circumstances arise.

(2) The circumstances referred to in subsection (1) above exist where the child is removed from or retained outside, or himself leaves or remains outside, the part of the United Kingdom in which he was habitually resident before his change of residence—

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(a) without the agreement of the person or all the persons having, under the law of that part of the United Kingdom, the right to determine where he is to reside, or

(b) in contravention of an order made by a court in any part of the United Kingdom.

(3) A child shall cease to be treated by virtue of subsection (1) above as habitually resident in a part of the United Kingdom if, during the period there mentioned—

(a) he attains the age of sixteen, or

(b) he becomes habitually resident outside that part of the United Kingdom with the agreement of the person or persons mentioned in subsection (2)(a) above and not in contravention of an order made by a court in any part of the United Kingdom.

42 General interpretation of Part I.

(1) In this Part—

"certified copy", in relation to an order of any court, means a copy certified by the prescribed officer of the court to be a true copy of the order or of the official record of the order;

[F222"parental responsibilities" and "parental rights" have the meanings respectively given by sections 1(3) and 2(4) of the Children (Scotland) Act 1995;**]**

"part of the United Kingdom" means England and Wales, Scotland or Northern Ireland;

"prescribed" means prescribed by rules of court or act of sederunt.

F223 …

[F224"the Hague Convention" means the Convention on Jurisdiction, Applicable Law, Recognition, Enforcement and Co-Operation in respect of Parental Responsibility and Measures for the Protection of Children that was signed at The Hague on 19 October 1996.**]**

(2) For the purposes of this Part proceedings in England and Wales or in Northern Ireland for divorce, nullity or judicial separation in respect of the marriage of the parents of a child shall, unless they have been dismissed, be treated as continuing until the child concerned attains the age of **[**F225eighteen—

(a) in the case of proceedings for a decree of divorce, nullity or judicial separation, whether or not a decree has been granted and whether or not (in the case of a decree of divorce or nullity of marriage) that decree has been made absolute;

(b) in the case of proceedings for a divorce, nullity of marriage or judicial separation order, whether or not an order has been made and whether or not (in the case of a divorce or nullity of marriage order) that order has been made final.**]**

[F226(2A) For the purposes of this Part proceedings in England and Wales or in Northern Ireland for dissolution, annulment or legal separation in respect of the civil partnership of the parents of the child shall, unless they have been dismissed, be treated as continuing until the child concerned attains the age of eighteen (whether or not a dissolution, nullity or separation order has been made and whether or not, in the case of a dissolution or nullity order, that order has been made final).**]**

(3) For the purposes of this Part, matrimonial proceedings **[**F227or civil partnership proceedings**]** in a court in Scotland which has jurisdiction in those proceedings to make

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a **[**F228Part I order**]** with respect to a child shall, unless they have been dismissed or decree of absolvitor has been granted therein, be treated as continuing until the child concerned attains the age of sixteen.

(4) Any reference in this Part to proceedings in respect of the marriage **[**F229or civil partnership**]** of the parents of a child shall, in relation to a child who, although not a child of both parties to the marriage **[**F229or civil partnership**]** , is a child of the family of those parties, be construed as a reference to proceedings in respect of that marriage **[**F229or civil partnership**]**; and for this purpose "child of the family"—

(a) if the proceedings are in England and Wales, means any child who has been treated by both parties as a child of their family, except a child who **[**F230is placed with those parties as foster parents**]** by a local authority or a voluntary organisation;

(b) if the proceedings are in Scotland, means any child **[**F231who has been treated by both parties as a child of their family, except a child who has been placed with those parties as foster parents by a local authority or a voluntary organisation;**]**

(c) if the proceedings are in Northern Ireland, means any child who has been treated by both parties as a child of their family, except a child who **[**F232is placed with those parties as foster parents by an authority within the meaning of the Children (Northern Ireland) Order 1995**]** or a voluntary organisation.

[F233(4A) Any reference in this Part to proceedings in respect of the civil partnership of the parents of a child shall, in relation to a child who, although not a child of the civil partners, is a child of the family of the civil partners, be construed as a reference to proceedings in respect of that civil partnership; and for this purpose "child of the family" has the meaning given in paragraphs (a) to (c) of subsection (4) (but substituting references to the civil partners for references to the parties to the marriage).**]**

(5) References in this Part to custody orders include (except where the context otherwise requires) references to custody orders as varied.

(6) For the purposes of this Part each of the following orders shall be treated as varying the **[**F228Part I order**]** to which it relates—

(a) an order which provides for a person **[**F234to be allowed contact with or**]** to be given access to a child who is the subject of a **[**F228Part I order**]**, or which makes provision for the education of such a child,

F235(b) . . . . . .

[F236(7) In this Part—

(a) references to Part I proceedings in respect of a child are references to any proceedings for a Part I order or an order corresponding to a Part I order and include, in relation to proceedings outside the United Kingdom, references to proceedings before a tribunal or other authority having power under the law having effect there to determine Part I matters; and

(b) references to Part I matters are references to matters that might be determined by a Part I order or an order corresponding to a Part I order.**]**

Textual Amendments

F222 S. 42(1): definition of "parental responsibilities" inserted (1.11.1996) by 1995 c. 36, s. 105(4), **Sch. 4 para. 41(9)(a)**; S.I. 1996/2203, art. 3(3), **Sch.**

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F223 Words in s. 42(1) omitted (S.) (31.12.2020) by virtue of The Jurisdiction and Judgments (Family, Civil Partnership and Marriage (Same Sex Couples)) (EU Exit) (Scotland) (Amendment etc.) Regulations 2019 (S.S.I. 2019/104), reg. 1, **sch. 1 para. 2(6)** (with reg. 6) (as amended by S.S.I. 2020/441, regs. 1(2)(a), 16); 2020 c. 1, Sch. 5 para. 1(1) and (E.W.N.I.) by virtue of The Jurisdiction and Judgments (Family) (Amendment etc.) (EU Exit) Regulations 2019 (S.I. 2019/519), reg. 1(1), **Sch. para. 15(6)** (with reg. 8) (as amended by S.I. 2020/1574, regs. 1, 5(2)); 2020 c. 1, Sch. 5 para. 1(1)

F224 Words in s. 42(1) inserted: (E.W.N.I.) (1.11.2012) by The Parental Responsibility and Measures for the Protection of Children (International Obligations) (England and Wales and Northern Ireland) Regulations 2010 (S.I. 2010/1898), reg. 1(2), **Sch. para. 9**; (S.) (1.11.2012) by The Parental Responsibility and Measures for the Protection of Children (International Obligations) (Scotland) Regulations 2010 (S.S.I. 2010/213), reg. 1(2), **sch. para. 5**

F225 Words in s. 42(2) substituted (6.4.2022) by Divorce, Dissolution and Separation Act 2020 (c. 11), s. 8(1)(8), **Sch. para. 51(4)**; S.I. 2022/283, reg. 2

F226 S. 42(2A) inserted (E.W.N.I.) (5.12.2005) by The Civil Partnership (Family Proceedings and Housing Consequential Amendments) Order 2005 (S.I. 2005/3336), arts. 1, **19(2)** (with art. 2(4))

F227 Words in s. 42(3) inserted (E.W.) (5.12.2005) by The Civil Partnership (Family Proceedings and Housing Consequential Amendments) Order 2005 (S.I. 2005/3336), arts. 1, **19(3)** (with art. 2(4)) and (S.) (5.12.2005) by The Civil Partnership Act 2004 (Consequential Amendments) (Scotland) Order 2005 (S.S.I. 2005/623), arts. 1, **17(2)**

F228 Words in s. 42(3)(6)(6a)substituted (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 13 para. 62(2)(a)** (with Sch. 14 para. 1(1)); S.I. 1991/828, **art. 3(2)**

F229 Words in s. 42(4) inserted (S.) (5.12.2005) by The Civil Partnership Act 2004 (Consequential Amendments) (Scotland) Order 2005 (S.S.I. 2005/623), arts. 1, **17(3)**

F230 Words in s. 42(4)(a) substituted (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 13 para. 71(1)** (with Sch. 14 para. 1(1)); S.I. 1991/828, **art. 3(2)**

F231 Words in s. 42(4)(b) substituted (1.11.1996) by 1995 c. 36, s. 105(4), **Sch. 4 para. 41(9)(b)**; S.I. 1996/2203, art. 3(3), **Sch**

F232 Words in s. 42(4)(c) substituted (4.11.1996) by S.I. 1995/756, **art. 12(4)**; S.R. 1996/297, **para. 3**

F233 S. 42(4A) inserted (E.W.N.I.) (5.12.2005) by The Civil Partnership (Family Proceedings and Housing Consequential Amendments) Order 2005 (S.I. 2005/3336), arts. 1, **19(4)** (with art. 2(4))

F234 Words in s. 42(6)(a) inserted (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 13 para. 71(2)** (with Sch. 14 para. 1(1)); S.I. 1991/828, **art. 3(2)**

F235 S. 42(6)(b)-(d) and words repealed (4.11.1996) by S.I. 1995/756, art. 15, **Sch.**; S.R. 1996/297, **para. 3**

F236 S. 42(7) substituted (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 13 para. 62(3)** (with Sch. 14 para. 1(1)); S.I. 1991/828, **art. 3(2)**

43 Application of Part I to dependent territories.

(1) Her Majesty may by Order in Council make provision corresponding to or applying any of the foregoing provisions of this Part, with such modifications as appear to Her Majesty to be appropriate, for the purpose of regulating—

(a) in any dependent territory;

(b) as between any dependent territory and any part of the United Kingdom; or

(c) as between any dependent territory and any other such territory,

the jurisdiction of courts to make custody orders, or orders corresponding to custody orders, and the recognition and enforcement of such orders.

(2) In subsection (1) above "dependent territory" means any of the following territories—

(a) the Isle of Man,

(b) any of the Channel Islands, and

(c) any colony.

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(3) An Order in Council under subsection (1) above may contain such consequential, incidental and supplementary provisions as appear to Her Majesty to be necessary or expedient.

(4) An Order in Council under subsection (1)(b) above which makes provision affecting the law of any part of the United Kingdom shall be subject to annulment in pursuance of a resolution of either House of Parliament.

Subordinate Legislation Made

P1 S. 43: s. 43 power exercised by S.I. 1991/1723.

PART II

RECOGNITION OF DIVORCES, ANNULMENTS AND LEGAL SEPARATIONS

Divorces, annulments and judicial separations granted in the British Islands

44 Recognition in United Kingdom of divorces, annulments and judicial separations granted in the British Islands.

(1) Subject to section 52(4) and (5)(a) of this Act, no divorce or annulment obtained in any part of the British Islands shall be regarded as effective in any part of the United Kingdom unless granted by a court of civil jurisdiction.

(2) Subject to section 51 of this Act, the validity of any divorce, annulment or judicial separation granted by a court of civil jurisdiction in any part of the British Islands shall be recognised throughout the United Kingdom.

Overseas divorces, annulments and legal separations

45 Recognition in the United Kingdom of overseas divorces, annulments and legal separations.

[F237(1) Subject to F238...**]** sections 51 and 52 of this Act, the validity of a divorce, annulment or legal separation obtained in a country outside the British Islands (in this Part referred to as an overseas divorce, annulment or legal separation) shall be recognised in the United Kingdom if, and only if, it is entitled to recognition—

(a) by virtue of sections 46 to 49 of this Act, or

(b) by virtue of any enactment other than this Part.

F239(2) . . . . . .

Textual Amendments

F237 S. 45: words "(1) Subject to subsection (2) of this section" substituted for "Subject" (1.3.2001 for E.W.S. and 30.3.2001 for N.I.) by virtue of S.I. 2001/310, **reg. 9(a)**; S.S.I. 2001/36, **reg. 4(5)(a)(b)**; S.I. 2001/660, **reg. 8(a)**

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F238 Words in s. 45(1) omitted (S.) (31.12.2020) by virtue of The Jurisdiction and Judgments (Family, Civil Partnership and Marriage (Same Sex Couples)) (EU Exit) (Scotland) (Amendment etc.) Regulations 2019 (S.S.I. 2019/104), reg. 1, **sch. 1 para. 2(7)(a)** (with reg. 6) (as amended by S.S.I. 2020/441, regs. 1(2)(a), 16); 2020 c. 1, Sch. 5 para. 1(1); and (E.W.N.I.) by virtue of The Jurisdiction and Judgments (Family) (Amendment etc.) (EU Exit) Regulations 2019 (S.I. 2019/519), reg. 1(1), **Sch. para. 15(7)(a)** (with reg. 8) (as amended by S.I. 2020/1574, regs. 1, 5(2)); 2020 c. 1, Sch. 5 para. 1(1)

F239 S. 45(2) omitted (S.) (31.12.2020) by virtue of The Jurisdiction and Judgments (Family, Civil Partnership and Marriage (Same Sex Couples)) (EU Exit) (Scotland) (Amendment etc.) Regulations 2019 (S.S.I. 2019/104), reg. 1, **sch. 1 para. 2(7)(b)** (with reg. 6) (as amended by S.S.I. 2020/441, regs. 1(2)(a), 16); 2020 c. 1, Sch. 5 para. 1(1); and (E.W.N.I.) by virtue of The Jurisdiction and Judgments (Family) (Amendment etc.) (EU Exit) Regulations 2019 (S.I. 2019/519), reg. 1(1), **Sch. para. 15(7)(b)** (with reg. 8) (as amended by S.I. 2020/1574, regs. 1, 5(2)); 2020 c. 1, Sch. 5 para. 1(1)

46 Grounds for recognition.

(1) The validity of an overseas divorce, annulment or legal separation obtained by means of proceedings shall be recognised if—

(a) the divorce, annulment or legal separation is effective under the law of the country in which it was obtained; and

(b) at the relevant date either party to the marriage—

(i) was habitually resident in the country in which the divorce, annulment or legal separation was obtained; or

(ii) was domiciled in that country; or

(iii) was a national of that country.

(2) The validity of an overseas divorce, annulment or legal separation obtained otherwise than by means of proceedings shall be recognised if—

(a) the divorce, annulment or legal separation is effective under the law of the country in which it was obtained;

(b) at the relevant date—

(i) each party to the marriage was domiciled in that country; or

(ii) either party to the marriage was domiciled in that country and the other party was domiciled in a country under whose law the divorce, annulment or legal separation is recognised as valid; and

(c) neither party to the marriage was habitually resident in the United Kingdom throughout the period of one year immediately preceding that date.

(3) In this section "the relevant date" means—

(a) in the case of an overseas divorce, annulment or legal separation obtained by means of proceedings, the date of the commencement of the proceedings;

(b) in the case of an overseas divorce, annulment or legal separation obtained otherwise than by means of proceedings, the date on which it was obtained.

(4) Where in the case of an overseas annulment, the relevant date fell after the death of either party to the marriage, any reference in subsection (1) or (2) above to that date shall be construed in relation to that party as a reference to the date of death.

(5) For the purpose of this section, a party to a marriage shall be treated as domiciled in a country if he was domiciled in that country either according to the law of that country in family matters or according to the law of the part of the United Kingdom in which the question of recognition arises.

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47 Cross-proceedings and divorces following legal separations.

(1) Where there have been cross-proceedings, the validity of an overseas divorce, annulment or legal separation obtained either in the original proceedings or in the cross-proceedings shall be recognised if—

(a) the requirements of section 46(1)(b)(i), (ii) or (iii) of this Act are satisfied in relation to the date of the commencement either of the original proceedings or of the cross-proceedings, and

(b) the validity of the divorce, annulment or legal separation is otherwise entitled to recognition by virtue of the provisions of this Part.

(2) Where a legal separation, the validity of which is entitled to recognition by virtue of the provisions of section 46 of this Act or of subsection (1) above is converted, in the country in which it was obtained, into a divorce which is effective under the law of that country, the validity of the divorce shall be recognised whether or not it would itself be entitled to recognition by virtue of those provisions.

48 Proof of facts relevant to recognition.

(1) For the purpose of deciding whether an overseas divorce, annulment or legal separation obtained by means of proceedings is entitled to recognition by virtue of section 46 and 47 of this Act, any finding of fact made (whether expressly or by implication) in the proceedings and on the basis of which jurisdiction was assumed in the proceedings shall—

(a) if both parties to the marriage took part in the proceedings, be conclusive evidence of the fact found; and

(b) in any other case, be sufficient proof of that fact unless the contrary is shown.

(2) In this section "finding of fact" includes a finding that either party to the marriage—

(a) was habitually resident in the country in which the divorce, annulment or legal separation was obtained; or

(b) was under the law of that country domiciled there; or

(c) was a national of that country.

(3) For the purposes of subsection (1)(a) above, a party to the marriage who has appeared in judicial proceedings shall be treated as having taken part in them.

Supplemental

49 Modifications of Part II in relation to countries comprising territories having different systems of law.

(1) In relation to a country comprising territories in which different systems of law are in force in matters of divorce, annulment or legal separation, the provisions of this Part mentioned in subsections (2) to (5) below shall have effect subject to the modifications there specified.

(2) In the case of a divorce, annulment or legal separation the recognition of the validity of which depends on whether the requirements of subsection (1)(b)(i) or (ii) of section 46 of this Act are satisfied, that section and, in the case of a legal separation, section 47(2) of this Act shall have effect as if each territory were a separate country.

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(3) In the case of a divorce, annulment or legal separation the recognition of the validity of which depends on whether the requirements of subsection (1)(b)(iii) of section 46 of this Act are satisfied—

(a) that section shall have effect as if for paragraph (a) of subsection (1) there were substituted the following paragraph—

"(a) the divorce, annulment or legal separation is effective throughout the country in which it was obtained;"; and

(b) in the case of a legal separation, section 47(2) of this Act shall have effect as if for the words "is effective under the law of that country" there were substituted the words "is effective throughout that country".

(4) In the case of a divorce, annulment or legal separation the recognition of the validity of which depends on whether the requirements of subsection (2)(b) of section 46 of this Act are satisfied, that section and section 52(3) and (4) of this Act and, in the case of a legal separation, section 47(2) of this Act shall have effect as if each territory were a separate country.

(5) Paragraphs (a) and (b) of section 48(2) of this Act shall each have effect as if each territory were a separate country.

50 Non-recognition of divorce or annulment in another jurisdiction no bar to remarriage.

Where, in any part of the United Kingdom—

(a) a divorce or annulment has been granted by a court of civil jurisdiction, or

(b) the validity of a divorce or annulment is recognised by virtue of this Part,

the fact that the divorce or annulment would not be recognised elsewhere shall not preclude either party to the marriage from **[**F240forming a subsequent marriage or civil partnership in that part of the United Kingdom or cause the subsequent marriage or civil partnership of either party (wherever it takes place) to be treated as invalid in that part. **]**

Textual Amendments

F240 Words in s. 50 substituted (5.12.2005) by Civil Partnership Act 2004 (c. 33), s. 263(10)(b), **Sch. 27 para. 125**; S.I. 2005/3175, art. 2(2)

51 Refusal of recognition.

(1) Subject to section 52 of this Act, recognition of the validity of—

(a) a divorce, annulment or judicial separation granted by a court of civil jurisdiction in any part of the British Islands, or

(b) an overseas divorce, annulment or legal separation,

may be refused in any part of the United Kingdom if the divorce, annulment or separation was granted or obtained at a time when it was irreconcilable with a decision determining the question of the subsistence or validity of the marriage of the parties previously given (whether before or after the commencement of this Part) by a court of civil jurisdiction in that part of the United Kingdom or by a court elsewhere and recognised or entitled to be recognised in that part of the United Kingdom.

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(2) Subject to section 52 of this Act, recognition of the validity of—

(a) a divorce or judicial separation granted by a court of civil jurisdiction in any part of the British Islands, or

(b) an overseas divorce or legal separation,

may be refused in any part of the United Kingdom if the divorce or separation was granted or obtained at a time when, according to the law of that part of the United Kingdom (including its rules of private international law and the provisions of this Part), there was no subsisting marriage between the parties.

(3) Subject to section 52 of this Act, recognition by virtue of section 45 of this Act of the validity of an overseas divorce, annulment or legal separation may be refused if—

(a) in the case of a divorce, annulment or legal separation obtained by means of proceedings, it was obtained—

(i) without such steps having been taken for giving notice of the proceedings to a party to the marriage as, having regard to the nature of the proceedings and all the circumstances, should reasonably have been taken; or

(ii) without a party to the marriage having been given (for any reason other than lack of notice) such opportunity to take part in the proceedings as, having regard to those matters, he should reasonably have been given; or

(b) in the case of a divorce, annulment or legal separation obtained otherwise than by means of proceedings—

(i) there is no official document certifying that the divorce, annulment or legal separation is effective under the law of the country in which it was obtained; or

(ii) where either party to the marriage was domiciled in another country at the relevant date, there is no official document certifying that the divorce, annulment or legal separation is recognised as valid under the law of that other country; or

(c) in either case, recognition of the divorce, annulment or legal separation would be manifestly contrary to public policy.

(4) In this section—

"official", in relation to a document certifying that a divorce, annulment or legal separation is effective, or is recognised as valid, under the law of any country, means issued by a person or body appointed or recognised for the purpose under that law;

"the relevant date" has the same meaning as in section 46 of this Act;

and subsection (5) of that section shall apply for the purposes of this section as it applies for the purposes of that section.

(5) Nothing in this Part shall be construed as requiring the recognition of any finding of fault made in any proceedings for divorce, annulment or separation or of any maintenance, custody or other ancillary order made in any such proceedings.

52 Provisions as to divorces, annulments etc. obtained before commencement of Part II.

(1) The provisions of this Part shall apply—

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(a) to a divorce, annulment or judicial separation granted by a court of civil jurisdiction in the British Islands before the date of the commencement of this Part, and

(b) to an overseas divorce, annulment or legal separation obtained before that date,

as well as to one granted or obtained on or after that date.

(2) In the case of such a divorce, annulment or separation as is mentioned in subsection (1) (a) or (b) above, the provisions of this Part shall require or, as the case may be, preclude the recognition of its validity in relation to any time before that date as well as in relation to any subsequent time, but those provisions shall not—

(a) affect any property to which any person became entitled before that date, or

(b) affect the recognition of the validity of the divorce, annulment or separation if that matter has been decided by any competent court in the British Islands before that date.

(3) Subsections (1) and (2) above shall apply in relation to any divorce or judicial separation granted by a court of civil jurisdiction in the British Islands before the date of the commencement of this Part whether granted before or after the commencement of section 1 of the [M4]Recognition of Divorces and Legal Separations Act 1971.

(4) The validity of any divorce, annulment or legal separation mentioned in subsection (5) below shall be recognised in the United Kingdom whether or not it is entitled to recognition by virtue of any of the foregoing provisions of this Part.

(5) The divorces, annulments and legal separations referred to in subsection (4) above are—

(a) a divorce which was obtained in the British Islands before 1st January 1974 and was recognised as valid under rules of law applicable before that date;

(b) an overseas divorce which was recognised as valid under the Recognition of Divorces and Legal Separations Act 1971 and was not affected by section 16(2) of the Domicile and [M5]Matrimonial Proceedings Act 1973 (proceedings otherwise than in a court of law where both parties resident in United Kingdom);

(c) a divorce of which the decree was registered under section 1 of the [M6]Indian and Colonial Divorce Jurisdiction Act 1926;

(d) a divorce or annulment which was recognised as valid under section 4 of the [M7]Matrimonial Causes (War Marriages) Act 1944; and

(e) an overseas legal separation which was recognised as valid under the [M8]Recognition of Divorces and Legal Separations Act 1971.

Marginal Citations

M4 1971 c. 53.
M5 1973 c. 45.
M6 1926 c. 40.
M7 1944 c. 43.
M8 1971 c. 53

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53 Effect of divorces and annulments on wills.

In subsection (1) of section 18A of the [M9]Wills Act 1837 (effect of a decree of divorce or nullity of marriage on wills)—

(a) after the word "court" there shall be inserted the words "of civil jurisdiction in England and Wales"; and

(b) for the words "or declares it void" there shall be substituted the words "or his marriage is dissolved or annulled and the divorce or annulment is entitled to recognition in England and Wales by virtue of Part II of the Family Law Act 1986".

Marginal Citations

M9 1837 c. 26.

54 Interpretation of Part II.

(1) In this Part—

"annulment" includes any **[**[F241]nullity of marriage order or**]** decree or declarator of nullity of marriage, however expressed;

[F242]...

"part of the United Kingdom" means England and Wales, Scotland or Northern Ireland;

"proceedings" means judicial or other proceedings.

(2) In this Part "country" includes a colony or other dependent territory of the United Kingdom but for the purposes of this Part a person shall be treated as a national of such a territory only if it has a law of citizenship or nationality separate from that of the United Kingdom and he is a citizen or national of that territory under that law.

Textual Amendments

F241 Words in s. 54 inserted (6.4.2022) by Divorce, Dissolution and Separation Act 2020 (c. 11), s. 8(1)(8), **Sch. para. 51(5)**; S.I. 2022/283, reg. 2

F242 Words in s. 54(1) omitted (S.) (31.12.2020) by virtue of The Jurisdiction and Judgments (Family, Civil Partnership and Marriage (Same Sex Couples)) (EU Exit) (Scotland) (Amendment etc.) Regulations 2019 (S.S.I. 2019/104), reg. 1, **sch. 1 para. 2(8)** (with reg. 6) (as amended by S.S.I. 2020/441, regs. 1(2)(a), 16); 2020 c. 1, Sch. 5 para. 1(1); and (E.W.N.I.) by virtue of The Jurisdiction and Judgments (Family) (Amendment etc.) (EU Exit) Regulations 2019 (S.I. 2019/519), reg. 1(1), **Sch. para. 15(8)** (with reg. 8) (as amended by S.I. 2020/1574, regs. 1, 5(2)); 2020 c. 1, Sch. 5 para. 1(1)

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PART III

DECLARATIONS OF STATUS

55 Declarations as to marital status.

(1) Subject to the following provisions of this section, any person may apply to **[**[F243] the High Court or **[**[F244]the family court**]]** for one or more of the following declarations in relation to a marriage specified in the application, that is to say—

(a) a declaration that the marriage was at its inception a valid marriage;

(b) a declaration that the marriage subsisted on a date specified in the application;

(c) a declaration that the marriage did not subsist on a date so specified;

(d) a declaration that the validity of a divorce, annulment or legal separation obtained in any country outside England and Wales in respect of the marriage is entitled to recognition in England and Wales;

(e) a declaration that the validity of a divorce, annulment or legal separation so obtained in respect of the marriage is not entitled to recognition in England and Wales.

(2) A court shall have jurisdiction to entertain an application under subsection (1) above if, and only if, either of the parties to the marriage to which the application relates-

(a) is domiciled in England and Wales on the date of the application, or

(b) has been habitually resident in England and Wales throughout the period of one year ending with that date, or

(c) died before that date and either—

(i) was at death domiciled in England and Wales, or

(ii) had been habitually resident in England and Wales throughout the period of one year ending with the date of death.

(3) Where an application under subsection (1) above is made **[**[F245]to a court**]** by any person other than a party to the marriage to which the application relates, the court shall refuse to hear the application if it considers that the applicant does not have a sufficient interest in the determination of that application.

Textual Amendments

F243 Words in s. 55(1) substituted (1.4.2001) by 2000 c. 19, s. 83, **Sch. 8 para. 4(a)** (with s. 83(6)); S.I. 2001/774, **art. 2(b)(c)**

F244 Words in s. 55(1) substituted (22.4.2014) by Crime and Courts Act 2013 (c. 22), s. 61(3), **Sch. 11 para. 96**; S.I. 2014/954, art. 2(e) (with art. 3) (with transitional provisions and savings in S.I. 2014/956, arts. 3-11)

F245 Words in s. 55(3) inserted (1.4.2001) by 2000 c. 19, s. 83, **Sch. 8 para. 4(b)** (with s. 83(6)); S.I. 2001/774, **art. 2(b)(c)**

[[F246]55A Declarations of parentage.

(1) Subject to the following provisions of this section, any person may apply to the High Court **[**[F247]or the family court**]** for a declaration as to whether or not a person named in the application is or was the parent of another person so named.

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(2) A court shall have jurisdiction to entertain an application under subsection (1) above if, and only if, either of the persons named in it for the purposes of that subsection—

(a) is domiciled in England and Wales on the date of the application, or

(b) has been habitually resident in England and Wales throughout the period of one year ending with that date, or

(c) died before that date and either—

(i) was at death domiciled in England and Wales, or

(ii) had been habitually resident in England and Wales throughout the period of one year ending with the date of death.

(3) Except in a case falling within subsection (4) below, the court shall refuse to hear an application under subsection (1) above unless it considers that the applicant has a sufficient personal interest in the determination of the application (but this is subject to section 27 of the [M10]Child Support Act 1991).

(4) The excepted cases are where the declaration sought is as to whether or not—

(a) the applicant is the parent of a named person;

(b) a named person is the parent of the applicant; or

(c) a named person is the other parent of a named child of the applicant.

(5) Where an application under subsection (1) above is made and one of the persons named in it for the purposes of that subsection is a child, the court may refuse to hear the application if it considers that the determination of the application would not be in the best interests of the child.

(6) Where a court refuses to hear an application under subsection (1) above it may order that the applicant may not apply again for the same declaration without leave of the court.

(7) Where a declaration is made by a court on an application under subsection (1) above, the prescribed officer of the court shall notify the Registrar General, in such a manner and within such period as may be prescribed, of the making of that declaration.**]**

Textual Amendments

F246 S. 55A inserted (1.4.2001) by 2000 c. 19, **s. 83(2)** (with s. 83(6)); S.I. 2001/774, **art. 2(b)**

F247 Words in s. 55A(1) substituted (22.4.2014) by Crime and Courts Act 2013 (c. 22), s. 61(3), **Sch. 11 para. 97**; S.I. 2014/954, art. 2(e) (with art. 3) (with transitional provisions and savings in S.I. 2014/956, arts. 3-11)

Marginal Citations

M10 1991 c. 48.

[[F248]**56 Declarations as to parentage, legitimacy or legitimation.**

(1) Any person may apply to **[**[F249]the High Court or **[**[F250]the family court**]]** for a declaration—

[F251](a) . . . . . .

(b) that he is the legitimate child of his parents.

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(2) Any person may apply to **[**F249the High Court or **[**F252the family court**]]** for one (or for one or, in the alternative, the other) of the following declarations, that is to say—

(a) a declaration that he has become a legitimated person;

(b) a declaration that he has not become a legitimated person.

(3) A court shall have jurisdiction to entertain an application under this section if, and only if, the applicant—

(a) is domiciled in England and Wales on the date of the application; or

(b) has been habitually resident in England and Wales throughout the period of one year ending with that date.

(4) Where a declaration is made **[**by a court**]**on an application under subsection (1) above, the prescribed officer of the court shall notify the Registrar General, in such a manner and within such period as may be prescribed, of the making of that declaration.

(5) In this section "legitimated person" means a person legitimated or recognised as legitimated—

(a) under section 2 **[**F253, 2A**]** or 3 of the Legitimacy Act M111976;

(b) under section 1 or 8 of the Legitimacy Act M121926; or

(c) by a legitimation (whether or not by virtue of the subsequent marriage of his parents) recognised by the law of England and Wales and effected under the law of another country.**]**

Textual Amendments

F248 S. 56 substituted by Family Law Reform Act 1987 (c. 42, SIF 49:7), **ss. 22**, 34(5)

F249 Words in S. 56(1)(2) substituted (1.4.2001) by 2000 c. 19, s. 83, **Sch. 8 para. 5(a)** (with s. 83(6)); S.I. 2001/774, **art. 2(b)(c)**

F250 Words in s. 56(1) substituted (22.4.2014) by Crime and Courts Act 2013 (c. 22), s. 61(3), **Sch. 11 para. 98(2)**; S.I. 2014/954, art. 2(e) (with art. 3) (with transitional provisions and savings in S.I. 2014/956, arts. 3-11)

F251 S. 56(1)(a) repealed (1.4.2001) by 2000 c. 19, s. 85, **Sch. 9 Pt. IX** (with s. 83(6)); S.I. 2001/774, **art. 2(d)**

F252 Words in s. 56(2) substituted (22.4.2014) by Crime and Courts Act 2013 (c. 22), s. 61(3), **Sch. 11 para. 98(3)**; S.I. 2014/954, art. 2(e) (with art. 3) (with transitional provisions and savings in S.I. 2014/956, arts. 3-11)

F253 Word in s. 56(5)(a) inserted (6.4.2009 for specified purposes, 1.9.2009 in so far as not already in force) by Human Fertilisation and Embryology Act 2008 (c. 22), s. 68(2), **Sch. 6 para. 23**; S.I. 2009/479, art. 6(1)(e)(2) (with art. 7, Sch.)

Modifications etc. (not altering text)

C4 Words in S. 56(4) inserted (1.4.2001) by 2000 c. 19, s. 83, **Sch. 8 para. 5(b)** (with s. 83(6)); S.I. 2001/774, **art. 2(b)(c)**

Marginal Citations

M11 1976 c.31**(49:7).**

M12 1926 c.60**(49:7).**

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57 Declarations as to adoptions effected overseas.

(1) Any person whose status as an adopted child of any person depends on whether he has been adopted by that person by either—

[[F254](a) a Convention adoption, or an overseas adoption, within the meaning of the Adoption and Children Act 2002, or**]**

(b) an adoption recognised by the law of England and Wales and effected under the law of any country outside the British Islands,

may apply to **[**[F255]the High Court or **[**[F256]the family court**]]** for one (or for one or, in the alternative, the other) of the declarations mentioned in subsection (2) below.

(2) The said declarations are—

(a) a declaration that the applicant is for the purposes of section 39 of the Adoption Act 1976 **[**[F257]or section 67 of the Adoption and Children Act 2002**]** the adopted child of that person;

(b) a declaration that the applicant is not for the purposes of that section the adopted child of that person.

(3) A court shall have jurisdiction to entertain an application under subsection (1) above if, and only if, the applicant—

(a) is domiciled in England and Wales on the date of the application, or

(b) has been habitually resident in England and Wales throughout the period of one year ending with that date.

(4) Until the Adoption Act 1976 comes into force—

(a) subsection (1) above shall have effect as if for the reference to section 72(2) of that Act there were substituted a reference to section 4(3) of the [M13]Adoption Act 1968; and

(b) subsection (2) above shall have effect as if for the reference to section 39 of that Act there were substituted a reference to Part II of Schedule I to the [M14]Children Act 1975.

Textual Amendments

F254 S. 57(1)(a) substituted (30.12.2005) by Adoption and Children Act 2002 (c. 38), s. 148(1), **Sch. 3 para. 49(a)** (with Sch. 4 paras. 6-8); S.I. 2005/2213, art. 2(o)

F255 Words in s. 57(1) substituted (1.4.2001) by 2000 c. 19, s. 83, **Sch. 8 para. 6** (with s. 83(6)); S.I. 2001/774, **art. 2(b)(c)**

F256 Words in s. 57(1) substituted (22.4.2014) by Crime and Courts Act 2013 (c. 22), s. 61(3), **Sch. 11 para. 99**; S.I. 2014/954, art. 2(e) (with art. 3) (with transitional provisions and savings in S.I. 2014/956, arts. 3-11)

F257 Words in s. 57(2)(a) inserted (30.12.2005) by Adoption and Children Act 2002 (c. 38), s. 148(1), **Sch. 3 para. 49(b)** (with Sch. 4 paras. 6-8); S.I. 2005/2213, art. 2(o)

Marginal Citations

M13 1968 c. 53.

M14 1975 c. 72.

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58 General provisions as to the making and effect of declarations.

(1) Where on an application **[**F258to a court**]** for a declaration under this Part the truth of the proposition to be declared is proved to the satisfaction of the court, the court shall make that declaration unless to do so would manifestly be contrary to public policy.

(2) Any declaration made under this Part shall be binding on Her Majesty and all other persons.

(3) **[**F259A**]** court, on the dismissal of an application for a declaration under this Part, shall not have power to make any declaration for which an application has not been made.

(4) No declaration which may be applied for under this Part may be made otherwise than under this Part by any court.

(5) No declaration may be made by any court, whether under this Part or otherwise—

(a) that a marriage was at its inception void;

F260(b) . . . . . .

(6) Nothing in this section shall effect the powers of any court to **[**F261make a nullity of marriage order**]**.

Textual Amendments

F258 Words in s. 58(1) inserted (1.4.2001) by 2000 c. 19, s. 83, **Sch. 8 para. 7(a)** (with s. 83(6)); S.I. 2001/774, **art. 2(b)(c)**

F259 Word in s. 58(3) substituted (1.4.2001) by 2000 c. 19, s. 83, **Sch. 8 para. 7(b)** (with s. 83(6)); S.I. 2001/774, **art. 2(b)(c)**

F260 S. 58(5)(b) repealed (1.4.2001) by 2000 c. 19, ss. 83(3), 85, **Sch. 9 Pt. IX** (with s. 83(6)); S.I. 2001/774, **art. 2(b)-(d)**

F261 Words in s. 58(6) substituted (6.4.2022) by Divorce, Dissolution and Separation Act 2020 (c. 11), s. 8(1)(8), **Sch. para. 51(6)** (with s. 8(6)); S.I. 2022/283, reg. 2

59 Provisions relating to the Attorney-General.

(1) On an application **[**F262to a court**]** for a declaration under this Part the court may at any stage of the proceedings, of its own motion or on the application of any party to the proceedings, direct that all necessary papers in the matter be sent to the Attorney-General.

(2) The Attorney-General, whether or not he is sent papers in relation to an application **[**F262to a court**]** for a declaration under this Part, may—

(a) intervene in the proceedings on that application in such manner as he thinks necessary or expedient, and

(b) argue before the court any question in relation to the application which the court considers it necessary to have fully argued.

(3) Where any costs are incurred by the Attorney-General in connection with any application **[**F263to a court**]** for a declaration under this Part, the court may make such order as it considers just as to the payment of those costs by parties to the proceedings.

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Textual Amendments

F262 Words in s. 59(1)(2) inserted (1.4.2001) by 2000 c. 19, s. 83, **Sch. 8 para. 8(a)** (with s. 83(6)); S.I. 2001/774, **art. 2(b)(c)**

F263 Words in s. 59(3) inserted (1.4.2001) by 2000 c. 19, s. 83, **Sch. 8 para. 8(b)** (with s. 83(6)); S.I. 2001/774, **art. 2(b)(c)**

Modifications etc. (not altering text)

C5 S. 59 extended (prosp.) by 1976 c. 36, **s. 39(3B)** (as inserted (prosp.) by 1999 c. 18, **ss. 4(3)**, 18(3) (with s. 17(1))
S. 59 applied (prosp.) by Adoption and Children Act 2002 (c. 38), **s. 88(4)** (with Sch. 4 paras. 1, 6-8)

C6 S. 59 applied by 1976 c. 36, s. 39(3B) (as inserted (1.6.2003 for E.W.) by Adoption (Intercountry Aspects) Act 1999 (c. 18), **ss. 4(3)**, 18(3) (with s. 17); S.I. 2003/189, art. 2(2)(c))

C7 S. 59 applied (30.12.2005) by Adoption and Children Act 2002 (c. 38), **ss. 88(4)**, 148(1) (with Sch. 4 paras. 1, 6-8); S.I. 2005/2213, art. 2(f)

60 Supplementary provisions as to declarations.

(1) Any declaration made under this Part, and any application for such a declaration, shall be in the form prescribed by rules of court.

(2) Rules of court may make provision—

(a) as to the information required to be given by any applicant for a declaration under this Part;

(b) as to the persons who are to be parties to proceedings on an application under this Part;

(c) requiring notice of an application under this Part to be served on the Attorney-General **[**F264and on persons who may be affected by any declaration applied for**]**.

(3) No proceedings under this Part shall affect any final judgment or decree already pronounced or made by any court of competent jurisdiction.

(4) The court hearing an application under this Part may direct that the whole or any part of the proceedings shall be heard in camera, and an application for a direction under this subsection shall be heard in camera unless the court otherwise directs.

F265(5) . . . . . .

Textual Amendments

F264 Words added by Family Law Reform Act 1987 (c. 42, SIF 49:7), ss. 33(1), 34(2)(5), **Sch. 2 para. 96**

F265 S. 60(5) omitted (22.4.2014) by virtue of Crime and Courts Act 2013 (c. 22), s. 61(3), **Sch. 11 para. 100**; S.I. 2014/954, art. 2(e) (with art. 3) (with transitional provisions and savings in S.I. 2014/956, arts. 3-11)

Modifications etc. (not altering text)

C8 S. 60 extended (prosp.) by 1976 c. 36, **s. 39(3B)** (as inserted (prosp.) by 1999 c. 18, **ss. 4(3)**, 18(3) (with s. 17(1)))
S. 60 applied (prosp.) by Adoption and Children Act 2002 (c. 38), **s. 88(4)** (with Sch. 4 paras. 1, 6-8)

C9 S. 60 applied by 1976 c. 36, s. 39(3B) (as inserted (1.6.2003 for E.W.) by Adoption (Intercountry Aspects) Act 1999 (c. 18), **ss. 4(3)**, 18(3) (with s. 17); S.I. 2003/189, art. 2(2)(c))

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C10 S. 60 applied (30.12.2005) by Adoption and Children Act 2002 (c. 38), **ss. 88(4)**, 148(1) (with Sch. 4 paras. 1, 6-8); S.I. 2005/2213, art. 2(f)

61 Abolition of right to petition for jactitation of marriage.

No person shall after the commencement of this Part be entitled to petition the High Court or a county court for jactitation of marriage.

62 Repeal of Greek Marriages Act 1884.

(1) The Greek Marriages Act 1884 shall cease to have effect.

(2) Any marriage in respect of which a declaration that it was a valid marriage could before the commencement of this Part have been made under the [M15]Greek Marriages Act 1884 is hereby declared to have been a valid marriage; but nothing in this subsection shall affect any status or right which would not have been affected by a declaration under that Act.

Marginal Citations

M15 1884 c. 20.

[F266]63 . . . . . .

Textual Amendments

F266 S. 63 repealed (1.4.2001) by 2000 c. 19, s. 85, **Sch. 9 Pt. IX** (with s. 83(6)); S.I. 2001/774, **art. 2(d)**

PART IV

MISCELLANEOUS AND GENERAL

64 . . . . . [F267]

Textual Amendments

F267 S. 64 repealed by Legal Aid Act 1988 (c. 34, SIF 77:1), s. 45, Sch. 5 para. 21, **Sch. 6**

65 Amendments of Child Abduction Act 1984.

In section 1(2)(b), (3)(a) and (5) of the [M16]Child Abduction Act 1984 (offence of abduction of child by parent etc.), for the words "a court in England and Wales" there shall be substituted the words "a court in the United Kingdom".

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Marginal Citations

M16 1984 c. 37.

F268 66 . . . . . .

Textual Amendments

F268 S. 66 repealed (4.11.1996) by S.I. 1995/755 (N.I. 2), art. 185(2), **Sch. 10**; S.R. 1996/297, **art. 2(2)**

PART IV

MISCELLANEOUS AND GENERAL

67 Amendments of Child Abduction and Custody Act 1985.

(1) The **M17**Child Abduction and Custody Act 1985 shall be amended as follows.

(2) In section 20 (suspension of court's powers), after subsection (2) there shall be inserted the following subsection—

"(2A) Where it appears to the Secretary of State—

(a) that an application has been made for the registration of a decision in respect of a child under section 16 above (other than a decision mentioned in subsection (3) below); or

(b) that such a decision is registered,

the Secretary of State shall not make, vary or revoke any custody order in respect of the child unless, in the case of an application for registration, the application is refused."

(3) In subsection (3) of that section, after the words "subsection (1)" there shall be inserted the words "or (2A)".

(4) Immediately before section 25 there shall be inserted the following section—

"**24A Power to order disclosure of child's whereabouts.**

(1) Where—

(a) in proceedings for the return of a child under Part I of this Act; or

(b) on an application for the recognition, registration or enforcement of a decision in respect of a child under Part II of this Act,

there is not available to the court adequate information as to where the child is, the court may order any person who it has reason to believe may have relevant information to disclose it to the court.

(2) A person shall not be excused from complying with an order under subsection (1) above by reason that to do so may incriminate him or his spouse of an offence; but a statement or admission made in compliance with such an

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order shall not be admissible in evidence against either of them in proceedings for any offence other than perjury."

(5) In section 27(1) (interpretation), in the definition of "custody proceedings" for the words from "made" onwards there shall be substituted the words "made, varied or revoked".

Marginal Citations

M17 1985 c. 60.

68 Minor and consequential amendments, repeals and savings.

(1) The enactments and orders mentioned in Schedule 1 to this Act shall have effect subject to the amendments specified in that Schedule, being minor amendments and amendments consequential on the provisions of this Act.

(2) The enactments mentioned in Schedule 2 to this Act (which include some that are spent or no longer of practical utility) are hereby repealed to the extent specified in the third column of that Schedule.

(3) Nothing in this Act shall affect—

(a) any proceedings under section 45 of the [M18]Matrimonial Causes Act 1973 begun before the date of the commencement of Part III of this Act;

(b) any proceedings for jactitation of marriage begun before that date; or

(c) any proceedings for a declaration begun in the High Court before that date by virtue of rules of court relating to declaratory judgments.

(4) The repeal of section 2 of the [M19]Legitimacy Declaration Act (Ireland) 1868 shall not affect any proceedings under that section begun before the commencement of that repeal.

Marginal Citations

M18 1973 c. 18.

M19 1868 c. 20.

69 Short title, commencement and extent.

(1) This Act may be cited as the Family Law Act 1986.

(2) Sections 64 to 67 of this Act shall come into force at the end of the period of two months beginning with the day on which this Act is passed.

(3) Subject to subsection (2) above, this Act shall come into force on such day as the relevant Minister or Ministers may by order made by statutory instrument appoint; and different days may be so appointed for different provisions or for different purposes.

(4) In subsection (3) above "the relevant Minister or Ministers" means—

(a) in the case of an order which appoints a day only for Part III of this Act and its associated amendments and repeals, the Lord Chancellor;

(b) in any other case, the Lord Chancellor and the Lord Advocate.

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(5) The following provisions of this Act, namely—

Chapter II of Part I;

section 53;

Part III;

sections 64 and 65;

section 68 (3); and

paragraphs 9 to 17, 19 and 23 to 27 of Schedule 1 and section 68(1) so far as relating to those paragraphs,

extend to England and Wales only.

(6) The following provisions of this Act, namely—

Chapter III of Part I;

section 26; and

paragraphs 1, 3 to 8, 18, 21 and 22 of Schedule 1 and section 68(1) so far as relating to those paragraphs,

extend to Scotland only; and sections 34 and 38 of this Act do not extend to Scotland.

(7) The following provisions of this Act, namely—

Chapter IV of Part I;

F269 . . .

section 68(4); and

paragraphs 2 and 32 to 34 of Schedule 1 and section 68(1) so far as relating to those paragraphs,

extend to Northern Ireland only; and paragraph 20 of Schedule 1 to this Act and section 68(1) of this Act so far as relating to that paragraph do not extend to Northern Ireland.

Textual Amendments

F269 Words in s. 69(7) repealed (N.I.) (4.11.1996) by S.I. 1995/755 (N.I. 2), art. 185(2), **Sch. 10**; S.R. 1996/297, **art. 2(2)**

Modifications etc. (not altering text)

C11 Power of appointment conferred by s. 69(3) partly exercised: 4.4.1988 appointed for all the prospective provisions of the Act except Sch. 1 para. 10(3) by S.I. 1988/375, **art. 2**

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SCHEDULES

SCHEDULE 1 Section 68(1).

MINOR AND CONSEQUENTIAL AMENDMENTS ACTS

ACTS

1 . . . . . F270

Textual Amendments

F270 Sch. 1 para. 1 repealed by Court of Session Act 1988 (c. 36, SIF 36:1), s. 52(2), **Sch. 2 Pt. I**

The Guardianship of Infants Act 1886 (c. 27)

F271 2 . . . . . .

Textual Amendments

F271 Sch. 1 para. 2 repealed (4.11.1996) by S.I. 1995/755 (N.I. 2), art. 185(2), **Sch. 10**; S.R. 1996/297, **art. 2(2)**

The Sheriff Courts (Scotland) Act 1907 (c. 51)

3 In section 6 of the Sheriff Courts (Scotland) Act 1907, after the words "Act 1973" there shall be inserted the words "and Chapter III of Part I of the Family Law Act 1986".

The Matrimonial Proceedings (Children) Act 1958 (c. 40)

4 In section 8(1) of the Matrimonial Proceedings (Children) Act 1958—

(a) for the words from "custody" to "jurisdiction" there shall be substituted the words "custody the court has power";

(b) at the end there shall be added the words " In this subsection "child" does not include a child with respect to whom the court has made an order under section 13(6) or 14(2) of the Family Law Act 1986 ".

5 In section 9(1) of the said Act of 1958, for the words from "either forthwith" to "granted therein" there shall be substituted the words ", subject to section 13(2) of the Family Law Act 1986."

6 In section 10(1) of the said Act of 1958, for the words from "custody" to "jurisdiction" there shall be substituted the words "custody the court has power".

7 In section 11(1) of that Act, for the words from "custody" to "jurisdiction" there shall be substituted the words "custody the court has power".

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The Law Reform (Miscellaneous Provisions) (Scotland) Act 1966 (c. 19)

8 In section 8(6) of the Law Reform (Miscellaneous Provisions) (Scotland) Act 1966, in the definition of "sheriff"—

(a) after the word "means" there shall be inserted the words—

"(a) in relation to an order under subsection (1)(a), (b) or (c) above or an order varying any such order";

(b) at the end there shall be added the words—

"(b) in relation to an order mentioned in subsection (1)(d) above or an order varying any such order, the sheriff having jurisdiction under section 9, 10 or 12 of the Family Law Act 1986."

The Domestic and Appellate Proceedings (Restriction of Publicity) Act 1968 (c. 63)

9 In section 2 of the Domestic and Appellate Proceedings (Restriction of Publicity) Act 1968 (restriction of publicity for certain proceedings)—

(a) in subsection (1) paragraph (a) shall cease to have effect and there shall be inserted at the end the following paragraph—

"(d) proceedings under Part III of the Family Law Act 1986";

(b) in subsection (3) for the words "subsection (1)(a)" there shall be substituted the words "subsection (1)(d)".

The Guardianship of Minors Act 1971 (c. 3)

F272 10 . . . . . .

Textual Amendments

F272 Sch. 1 para. 10 repealed (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 15** (with Sch. 14 paras. 1(1), 27(4)); S.I. 1991/828, **art. 3(2)**

F273 11 . . . . . .

Textual Amendments

F273 Sch. 1 para. 11 repealed (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 15** (with Sch. 14 paras. 1(1), 27(4)); S.I. 1991/828, **art. 3(2)**

12 In section 17 of that Act subsection (2) shall cease to have effect.

The Matrimonial Causes Act 1973 (c. 18)

F274 13 . . . . . .

Textual Amendments

F274 Sch. 1 para. 13 repealed (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 15** (with Sch. 14 paras. 1(1), 27(4)); S.I. 1991/828, **art. 3(2)**

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14 In section 47 of that Act (declarations in respect of polygamous marriages), for subsection (3) there shall be substituted the following subsection—

"(3) In this section "a declaration concerning the validity of a marriage" means any declaration under Part III of the Family Law Act 1986 involving a determination as to the validity of a marriage".

15 In section 50 of that Act (matrimonial causes rules)—

(a) in subsection (1) at the end of paragraph (a) there shall be inserted the words "and Part III of the Family Law Act 1986";

(b) in subsection (2) in paragraph (a) for the words "38 or 45 above" there shall be substituted the words "or 38", in paragraph (b) the words "proceedings in a county court under section 45 above or to" shall cease to have effect and in paragraph (c) the words "or to any aspect of section 47 above which is excepted by paragraph (b) above" shall cease to have effect.

The Guardianship Act 1973 (c. 29)

F275 16 . . . . . .

Textual Amendments

F275 Sch. 1 para. 16 repealed (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 15** (with Sch. 14 paras. 1(1), 27(4)); S.I. 1991/828, **art. 3(2)**

F276 17 . . . . . .

Textual Amendments

F276 Sch. 1 para. 17 repealed (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 15** (with Sch. 14 paras. 1(1), 27(4)); S.I. 1991/828, **art. 3(2)**

18 In section 10(3) of that Act, for the words from "any sheriff" to "1886" there shall be substituted the words "the sheriff court".

The Children Act 1975 (c. 72)

19 In section 33(1) of the Children Act 1975 the words "if the child is in England or Wales at the time the application is made" shall cease to have effect.

F277 20 . . . . . .

Textual Amendments

F277 Sch. 1 para. 20 repealed (14.10.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 15** (with Sch. 14 paras. 1(1), 27(4)); S.I. 1991/828, **art. 3(2)**

The Marriage (Scotland) Act 1977 (c. 15)

21 In proviso (ii) to section 3(5) of the Marriage (Scotland) Act 1977 (certificate as to capacity to marry)—

(a) after the word "above" there shall be inserted the word "(a)"; and

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(b) at the end there shall be added the words "or (b) if no such certificate has been issued only by reason of the fact that the validity of a divorce or annulment granted by a court of civil jurisdiction in Scotland or entitled to recognition in Scotland under section 44 or 45 of the Family Law Act 1986 is not recognised in the state in which the certificate would otherwise have been issued."

22 In section 26(2) of the said Act of 1977 there shall be inserted in the appropriate alphabetical position the following definition—

" "annulment" includes any decree or declarator of nullity of marriage, however expressed."

The Domestic Proceedings and Magistrates' Courts Act 1978 (c. 22)

F278 23 . . . . . .

Textual Amendments

F278 Sch. 1 para. 23 repealed (14.l0.1991) by Children Act 1989 (c. 41, SIF 20), s. 108, **Sch. 15** (with Sch. 14 paras. 1(1), 27(4)); S.I. 1991/828, **art. 3(2)**

F279 24 . . . . . .

Textual Amendments

F279 Sch. 1 para. 24 repealed (22.4.2014) by Crime and Courts Act 2013 (c. 22), s. 61(3), **Sch. 11 para. 210** Table; S.I. 2014/954, art. 2(e) (with art. 3) (with transitional provisions and savings in S.I. 2014/956, arts. 3-11)

The ***[***F280*Senior Courts Act 1981****]*** *(c. 54)*

Textual Amendments

F280 Words in Act substituted (1.10.2009) by Constitutional Reform Act 2005 (c. 4), s. 148(1), **Sch. 11 para. 1(2)**; S.I. 2009/1604, art. 2(d)

25 In section 26(b) of the **[**F280Senior Courts Act 1981**]** the words "or jactitation of marriage" shall cease to have effect.

26 In paragraph 3 of Schedule 1 to that Act (business assigned to Family Division of the High Court) there shall be added at the end the following sub-paragraph—

"(e) applications under Part III of the Family Law Act 1986."

The Matrimonial and Family Proceedings Act 1984 (c. 42)

27 In section 32 of the Matrimonial and Family Proceedings Act 1984 (what is family business), in the definition of "matrimonial cause" for the words "judicial separation or jactitation of marriage" there shall be substituted the words "or judicial separation".

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The Child Abduction and Custody Act 1985 (c. 60)

28 In section 9 of the Child Abduction and Custody Act 1985 (suspension of court's powers in cases of wrongful removal), after paragraph (a) there shall be inserted the following paragraph—

"(aa) enforcing under section 29 of the Family Law Act 1986 a custody order within the meaning of Chapter V of Part I of that Act;".

29 In section 20(2) of the said Act of 1985 (suspension of court's powers), after paragraph (a) there shall be inserted the following paragraph—

"(aa) in the case of proceedings under section 29 of the Family Law Act 1986 for the enforcement of a custody order within the meaning of Chapter V of Part I of that Act, enforce that order;".

30 In section 27(1) of the said Act of 1985 (interpretation), in the definition of "custody order" after the word "means" there shall be inserted the words "(unless the contrary intention appears)".

F281 31 . . . . . .

Textual Amendments

F281 Sch. 1 para. 31 repealed: (28.9.2009) by Adoption and Children (Scotland) Act 2007 (asp 4), s. 121(2), **sch. 3**; S.S.I. 2009/267, arts. 1(2), 2 (with arts. 3-21) (as amended (7.5.2012) by S.S.I. 2012/99, art. 2); and (E.W.N.I.) (15.7.2011) by The Adoption and Children (Scotland) Act 2007 (Consequential Modifications) Order 2011 (S.I. 2011/1740), art. 1(2), **Sch. 2 Pt. 3**

ORDERS

The Matrimonial Causes (Northern Ireland) Order 1978 S.I. 1978/1045 (N.I. 15)

F282 32 . . . . . .

Textual Amendments

F282 Sch. 1 para. 32 repealed (4.11.1996) by S.I. 1995/755 (N.I. 2), art. 185(2), **Sch. 10**; S.R. 1996/297, **art. 2(2)**

The Domestic Proceedings (Northern Ireland) Order 1980 S.I. 1980/563 (N.I. 5)

F283 33 . . . . . .

Textual Amendments

F283 Sch. 1 para. 33 repealed (4.11.1996) by S.I. 1995/755 (N.I. 2), art. 185(2), **Sch. 10**; S.R. 1996/297 art. 2(2)

34 In Article 32(1) of that Order, for the words "Without prejudice" there shall be substituted the words "Subject to section 19 of the Family Law Act 1986 and without prejudice".

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SCHEDULE 2

Section 68(2).

REPEALS

Chapter	Short title	Extent of repeal
31 & 32 Vict. c. 20.	The Legitimacy Declaration Act (Ireland) 1868.	Section 2.
47 & 48 Vict. c. 20.	The Greek Marriages Act 1884.	The whole Act.
49 & 50 Vict. c. 27.	The Guardianship of Infants Act 1886.	In section 9, the words from "court within" to "reside".
16 & 17 Geo.5. c. 40.	Indian and Colonial Divorce Jurisdiction Act 1926.	The whole Act.
3 & 4 Geo. 6. c. 35.	Indian and Colonial Divorce Jurisdiction Act 1940.	The whole Act.
7 & 8 Geo. 6. c. 43.	Matrimonial Causes (War Marriages) Act 1944.	The whole Act.
10 & 11 Geo. 6. c. 30.	Indian Independence Act 1947.	Section 17.
11 & 12 Geo. 6. c. 3.	Burma Independence Act 1947.	Section 4(3).
11 & 12 Geo. 6. c. 7.	Ceylon Independence Act 1947.	Section 3.
		In Schedule 2, paragraph 9.
14 Geo. 6. c. 20.	Colonial and Other Territories (Divorce Jurisdiction) Act 1950.	The whole Act.
14 Geo. 6. c. 37.	The Maintenance Orders Act 1950.	Section 7.
6 & 7 Eliz. 2. c. 40.	The Matrimonial Proceedings (Children) Act 1958.	Section 13.
8 & 9 Eliz. 2. c. 52.	Cyprus Act 1960.	In the Schedule, paragraph 14.
8 & 9 Eliz. 2. c. 55.	Nigeria Independence Act 1960.	In Schedule 2, paragraph 14.
9 & 10 Eliz. 2. c. 16.	Sierra Leone Independence Act 1961.	In Schedule 3, paragraph 15.
10 & 11 Eliz. 2. c. 1.	Tanganyika Independence Act 1961.	In Schedule 2, paragraph 15.
10 & 11 Eliz. 2. c. 23.	South Africa Act 1962.	In Schedule 3, paragraph 9.
10 & 11 Eliz. 2. c. 40.	Jamaica Independence Act 1962.	In Schedule 2, paragraph 14.

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10 & 11 Eliz. 2. c. 54.	Trinidad and Tobago Independence Act 1962.	In Schedule 2, paragraph 14.
10 & 11 Eliz. 2. c. 57.	Uganda Independence Act 1962.	In Schedule 3, paragraph 13.
1963 c. 54.	Kenya Independence Act 1963.	Section 7.
1964 c. 46.	Malawi Independence Act 1964.	Section 6.
1964 c. 65.	Zambia Independence Act 1964.	Section 7.
1966 c. 19.	The Law Reform (Miscellaneous Provisions) (Scotland) Act 1966.	In section 8(2), the words “made in a consistorial action”.
1966 c. 29.	Singapore Act 1966.	Section 2.
1968 c. 63.	The Domestic and Appellate Proceedings (Restriction of Publicity) Act 1968.	Section 2(1)(a).
1969 c. 29.	Tanzania Act 1969.	Section 2.
		In section 4(3), the words “or the Divorce Jurisdiction Acts”.
		Section 7(1).
1971 c. 3.	The Guardianship of Minors Act 1971.	Section 15(3) to (6).
		Section 17(2).
1971 c. 53.	Recognition of Divorces and Legal Separations Act 1971.	The whole Act.
1973 c. 18.	The Matrimonial Causes Act 1973.	Section 45.
		In section 50(2), in paragraph (b), the words “proceedings in a county court under section 45 above or to” and, in paragraph (c), the words “or to any aspect of section 47 above which is excepted by paragraph (b) above”.
1973 c. 29.	The Guardianship Act 1973.	In section 1(6), the words from “except that” to the end.
		In section 2(1), the words “15”, “and section 15(3) to (6)” and “they are”.

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		Section 5(3).
		In Schedule 2, in Part I, paragraph 3, and in Part II, the text of section 15(3) to (6) of the Guardianship of Minors Act 1971.
1973 c. 45.	Domicile and Matrimonial Proceedings Act 1973.	Section 2.
		Sections 15 and 16.
1973 c. 48.	The Pakistan Act 1973.	In section 4(5), the words from the beginning to "1940, and".
1975 c. 72.	The Children Act 1975.	In section 33(1), the words from "if" to the end.
		In section 53(1), the words from "but where" to the end.
		Section 54.
		In section 100(8), the words "or 42".
1981 c. 54.	The **[**F280Senior Courts Act 1981**]** .	In section 26(b), the words "or jactitation of marriage".
1984 c. 42.	The Matrimonial and Family Proceedings Act 1984.	In Schedule 1, paragraph 14.
1985 c. 73.	The Law Reform (Miscellaneous Provisions) (Scotland) Act 1985.	Section 16.

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Changes and effects yet to be applied to :

- s. 1(1)(ca)-(cc) inserted by 2022 c. 18 (N.I.) Sch. 3 para. 7
- s. 19(1A)-(1C) inserted by 2022 c. 18 (N.I.) Sch. 3 para. 8
- s. 29A inserted by 2020 asp 16 s. 29(2)
- s. 31(2) words inserted by 2020 asp 16 s. 29(3)

Changes and effects yet to be applied to the whole Act associated Parts and Chapters:
Whole provisions yet to be inserted into this Act (including any effects on those provisions):

- s. 1(1)(ca)-(cc) inserted by 2022 c. 18 (N.I.) Sch. 3 para. 7
- s. 19(1A)-(1C) inserted by 2022 c. 18 (N.I.) Sch. 3 para. 8
- s. 29A inserted by 2020 asp 16 s. 29(2)